

LIMITED LIABILITY COMPANY AGREEMENT
OF
10FSSAC5-A, LLC
(A Delaware Limited Liability Company)

THE INTERESTS AND UNITS REPRESENTED BY THIS LIMITED LIABILITY COMPANY AGREEMENT HAVE NOT BEEN REGISTERED UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED, OR UNDER ANY OTHER APPLICABLE SECURITIES LAWS. SUCH INTERESTS MAY NOT BE SOLD, ASSIGNED, PLEDGED, OR OTHERWISE DISPOSED OF AT ANY TIME WITHOUT EFFECTIVE REGISTRATION UNDER SUCH ACT AND LAWS, OR EXEMPTION THEREFROM, AND COMPLIANCE WITH THE OTHER SUBSTANTIAL RESTRICTIONS ON TRANSFERABILITY SET FORTH HEREIN.

**LIMITED LIABILITY COMPANY AGREEMENT OF
10FSSAC5-A, LLC**

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**LIMITED LIABILITY COMPANY AGREEMENT
OF
10FSSAC5-A, LLC**

This Limited Liability Company Agreement of 10FSSAC5-A, LLC is hereby adopted and entered into by its Members, as defined below, and confirmed and agreed to by 10FSSAC5-A, LLC, a Delaware limited liability company (the “Company”), effective as of March __, 2025 (the “Effective Date”).

WHEREAS, the Company was formed as a Delaware limited liability company upon the filing of its Certificate of Formation with the office of the Secretary of State of the State of Delaware under and pursuant to the Delaware Limited Liability Company Act (the “Act”); and

WHEREAS, the Company and its Members hereby set forth and adopt the limited liability company agreement (within the meaning of the Act) of the Company in its entirety, as follows;

NOW, THEREFORE, in consideration of the mutual covenants hereinafter contained and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Company and its members, intending to be legally bound, hereby set forth and amend, supersede, and restate in its entirety the limited liability company agreement (within the meaning of the Act) of the Company to read as follows.

**ARTICLE I
DEFINITIONS**

1.01 Definitions. Whenever used in this Agreement, the following terms with initial capital letters have the meanings set forth below:

“Act” means the Delaware Limited Liability Company Act, as from time to time amended, and any successor to the Act. Any reference in this Agreement to a specific statutory provision of the Act shall, unless otherwise specifically excluded, include any successor provision(s) to the referenced provision.

“Affiliate” means any Person that, directly or indirectly, owns or Controls any other Person on an aggregate basis, including all beneficial ownership and ownership or Control as a trustee, guardian or other fiduciary, or that is Controlled by or is under Common Control with such other Person.

“Agreement” means this Limited Liability Company Agreement of the Company and all schedules and exhibits hereto, as from time to time hereafter amended.

“Aggregate Capital Commitments” means the aggregate Capital Commitments to the Company and the aggregate Parallel Company Capital Commitments.

“Anti-Money Laundering Laws” has the meaning set forth in Section 10.12 below.

“BBA Audit Provisions” means the provisions for United States federal income tax audits of entities taxable as a partnership in subchapter C of chapter 63 of the Code, as they may be amended and in effect from time to time.

“Capital Account” has the meaning set forth in Section 3.08 below.

“Capital Commitment” has the meaning set forth in Section 3.01(a) below.

“Capital Contribution” means any contribution to the capital of the Company in cash or property by a Member, whenever made.

“Capital Event” means any transaction not in the ordinary course of business that results in the Company’s receipt of cash or other consideration other than Capital Contributions made to the Company, and includes, without limitation, any transactions resulting in proceeds of sales or exchanges or other dispositions of more than a *de minimis* amount of property not in the ordinary course of business (including a disposition of an Investment Property, whether directly or indirectly), debt financings or refinancings, condemnations, involuntary conversions, and receipts of insurance proceeds for the destruction of assets used in the trade or business of the Company or any Subsidiary or other Affiliate Entity of the Company with respect to an Investment Property, whether held directly or indirectly.

“Capital Raise End Date” has the meaning set forth in Section 3.03.

“Capital Raise Period” means the period commencing on the Initial Closing Date and terminating on (and including) the Capital Raise End Date.

“Certificate of Formation” means the Certificate of Formation of the Company filed with the Secretary of State, as amended or restated from time to time.

“Class” means and refers to a particular Class of Units of Interest, as more fully described in Section 2.09 and the other provisions of this Agreement. As of the Effective Date, there are two (2) authorized Classes of Units: Class I Units and Class S Units.

“Class I Member” means any Member holding Class I Units.

“Class I Unit” means a Unit in the Company that (i) represents a fractional part of the total Interests in the Company and (ii) has the respective rights, benefits and obligations specified with respect to Class I Units in this Agreement. Unless specifically provided otherwise by this Agreement, the Class I Units shall be nonvoting Units.

“Class S Distributions” has the meaning set forth in Section 4.02(f) below.

“Class S Member” means any Member holding Class S Units.

“Class S Unit” means a Unit in the Company that (i) represents a fractional part of the total Interests in the Company and (ii) has the respective rights, benefits and obligations

specified with respect to Class S Units in this Agreement. Unless specifically provided otherwise by this Agreement, the Class S Units shall be voting Units.

“Code” means the Internal Revenue Code of 1986 and any successor statute, as the same may be amended from time to time. Any reference in this Agreement to a specific statutory provision of the Code will, unless otherwise specifically excluded, include any successor provision(s) to the referenced provision.

“Company” means 10FSSAC5-A, LLC, a Delaware limited liability company.

“Company Expenses” has the meaning set forth in Section 5.07(b) below.

“Company Management Fees” has the meaning set forth in Section 5.09 below.

“Company Tax Rep” has the meaning set forth in Section 4.04(c)(i) below.

“Control” (including, with correlative meanings, the terms “Controlled by” and “under Common Control with”), as used with respect to any Person, means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of such Person, whether through ownership of voting securities, by contract or otherwise.

“Default” has the meaning set forth in Section 3.11 below.

“Designated Individual” has the meaning set forth in Section 4.04(c)(i) below.

“Dissolution Event” has the meaning set forth in Section 9.01 below.

“Distributable Cash” means, with respect to the Company for a period of time, all funds of the Company, whether derived from revenues or otherwise, on hand or in bank or other financial accounts of the Company as, in the discretion of the Management, are available for distribution to the Class I Members and Class S Members after provision has been made for (i) payment of all operating expenses of the Company as of such time (including Management Fees and Company Expenses), (ii) payment of all outstanding and unpaid current obligations of the Company as of such time, (iii) funding any future obligations of the Company that may be due currently as may be reasonably determined by the Management, and (iv) such reasonable reserves as the Management deems necessary or appropriate for Company operations.

“Eastern United States” means such portions of the contiguous United States that are east of the Rocky Mountains.

“Effective Date” has the meaning set forth in the introductory paragraph.

“Entity” means any foreign or domestic corporation, partnership, limited liability company, trust, unincorporated organization, joint venture, association or other entity, governmental body, or regulatory authority.

“ERISA” means the Employee Retirement Income Security Act of 1974, as amended from time to time.

“ERISA Investor” means a holder of Class I Units or prospective holder of Class I Units that is (i) a retirement or other employee benefit plan as defined in section 4(a) of ERISA (an “ERISA Plan”), (ii) an individual retirement account or other plan or account described in section 4975(e)(1) of the Code (a “4975 Plan”), or (iii) any Entity that is owned, directly or indirectly, by an ERISA Plan or 4975 Plan and whose assets constitute “plan assets” within the meaning of ERISA and the regulations thereunder.

“Excess Amount” has the meaning set forth in Section 9.03(c) below.

“Expansion” means any activity (i) that adds rental or leasable self-storage or parking square footage to an Investment Property, whether as a result of the expansion of an existing self-storage facility, the construction of a new self-storage facility, or otherwise, and (ii) the aggregate cost of which exceeds \$200,000 (excluding any development fees or general contractor fees).

“Fiscal Year” means the calendar year.

“Fully Exercising Members” has the meaning set forth in Section 3.04(b) below.

“General Conditions” means the general conditions required to complete an Expansion and includes, without limitation, administrative costs, mobilization costs, superintendent and oversight costs, dumpster costs, clean-up costs, project insurance costs, and costs of facilities, safety equipment, site security, project management, accounting, tools, equipment, photography, temporary labor, surveying, postage and courier services, communications, and vehicle fuel, maintenance and insurance.

“Indemnified Person” means any of the following Persons: (i) a Member, (ii) a Manager, (iii) the Company Tax Rep, in connection with the performance of its duties under Section 4.04(c) and elsewhere in this Agreement, and (iv) each Person who is, or at any relevant time was, an Affiliate, shareholder, partner, member, manager, officer, director, employee or agent of any of the persons listed in clause (ii) and (iii) above. “Indemnified Persons” mean, collectively, all such Persons.

“Initial Closing” has the meaning set forth in Section 3.01(c) below.

“Initial Closing Date” means the date on which the Initial Closing occurs.

“Initial Member” means each of Bradford Minsley, Clifton Minsley, and 10FSSAC5 Sponsor, LLC, which were the initial Members of the Company.

“Interest” means all of a Member’s ownership interest (within the meaning of the Act) and legal and equitable rights as an owner in the Company, including, without limitation, the Member’s share of the profits and losses of the Company, the right to receive distributions of

the Company's assets, any right to vote and any rights to participate in the management of the Company as provided in the Act and this Agreement.

"Investment Period" means the period commencing on the day immediately following the Capital Raise End Date and terminating on the later of (i) the Term Date or (ii) the end of the final extension of the term of the Company pursuant to Section 2.07(b); provided, however, that if the Company is dissolved and its affairs wound up in accordance with the provisions of this Agreement or the Act prior to the Term Date, the Investment Period will terminate on the date such dissolution and winding up of the Company is completed.

"Investment Property" has the meaning set forth in Section 2.06(a) below, and the term "Investment Properties" means more than one Investment Property.

"LLC Tax Cost" has the meaning set forth in Section 4.04(c)(iv) below.

"Lower Tier Distributions" has the meaning set forth in Section 4.02(f) below.

"Majority in Interest" means, with respect to all or any referenced group of Members, a combination of any of such Members who, in the aggregate, own more than fifty percent (50%) of the Units owned by all or such referenced group of Members.

"Management" means (i) the Manager at such time or times as the Company may have only one Manager, and (ii) the Managers as a group at such time or times as the Company may have more than one Manager.

"Management Expense" has the meaning set forth in Section 5.07(d).

"Management Fees" has the meaning set forth in Section 5.08 below.

"Manager" means 10F Manager, any other Person that succeeds such Manager in the capacity as a Manager of the Company, and any other Person(s) who may be elected to act as a Manager of the Company, in each case during the period in which any such Person is serving as the Manager of the Company as provided in this Agreement or under the Act, but does not include any Person that has ceased to be a Manager of the Company. The term "Managers" means the Manager at such time or times as the Company may have only one Manager, and means the Managers as a group at such time or times as the Company may have more than one Manager.

"Member" means each Person designated as a member of the Company on Exhibit C hereto and any other Person or Persons that hereafter become a member of the Company in accordance with this Agreement, during the period in which each such Person is a member of the Company as provided pursuant to this Agreement, but does not include any Person who has ceased to be a member of the Company. "Members" refers to such Persons as a group. At any time that there is only one Member of the Company, the term "Members" when used in this Agreement means and refers to the one Member.

“Net Income” has the meaning set forth for such term within the definition of “Income” and “Loss” set forth in Exhibit B attached hereto.

“Net Loss” has the meaning set forth for such term within the definition of “Income” and “Loss” set forth in Exhibit B attached hereto.

“Non-Fee Member” means any Member that is (i) a 10F Member designated by the Manager in whole or in part as a “Non-Fee Member” or (ii) a member of the Sponsor Group.

“Notice” has the meaning set forth in Section 3.04(b) below.

“OFAC” has the meaning set forth in Section 10.12 below.

“Operating Partnership” means 10FSSAC5 Operating Partnership, LP, a Delaware limited partnership.

“Operating Partnership Contributions” has the meaning set forth in Section 3.06 below.

“Parallel Company” means 10FSSAC5-B, LLC, a Delaware limited liability company.

“Parallel Company Capital Commitments” means the capital commitments made to the Parallel Company.

“Parallel Company Capital Contributions” mean the capital contributions made to the Parallel Company in respect of Parallel Company Capital Commitments.

“Parallel Company Limited Liability Company Agreement” means the Limited Liability Company Agreement of the Parallel Company, as it may be amended from time to time.

“Person” means an individual, a custodian for any individual under any jurisdiction’s Uniform Transfers to Minors Act or similar statute, a trust or a trustee on behalf of a trust, a guardianship or guardian on behalf of a guardianship, an estate, or any Entity.

“Plan Asset Regulations” mean the “plan asset” regulations issued by the United States Department of Labor and set forth in 29 C.F.R. section 2510.3-101 as promulgated under ERISA.

“PPM” means that certain Private Placement Memorandum in respect of the offering of Units in the Company dated March 13, 2025.

“Preferred Return” means, with respect to each Class I Unit as of any date, a cumulative amount equal to eight percent (8.0%) per annum (prorated for any partial year), compounded annually, on the Unreturned Capital Contributions with respect to such Class I Unit

(whether contributed by the current holder or the original holder of the Units). The Preferred Return shall accrue beginning on the date the related Capital Contribution is made to the Company.

“Prior Self-Storage Companies” means 10 Federal Self Storage Acquisition Company 1, LLC, 10 Federal Self Storage Acquisition Company 2, LLC, 10 Federal Self Storage Acquisition Company 3, LLC, 10 Federal Self Storage Acquisition Company 4, LLC, and 10F Opportunity Co 1, LLC.

“REIT” shall mean a real estate investment trust under Sections 856 through 860 of the Code.

“REIT Requirements” shall mean the requirements for an entity to be qualified and taxed as a real estate investment trust pursuant to Sections 856 through 860 of the Code and applicable Regulations related thereto.

“Regulations” means the temporary and final regulations promulgated by the United States Department of the Treasury pursuant to and in respect of provisions of the Code, as such regulations may be amended from time to time (including corresponding provisions of succeeding regulations).

“Referral Fee” has the meaning set forth in Section 5.08(b) below.

“Related Transfer” has the meaning set forth in Section 8.02(b) below.

“Reduced Price Units” has the meaning set forth in Section 3.04(b) below.

“SDN List” has the meaning set forth in Section 10.12 below.

“SSI List” has the meaning set forth in Section 10.12 below.

“Secondary Return” means, with respect to each Class I Unit as of any date, a cumulative amount equal to the excess of (i) fifteen percent (15%) per annum (prorated for any partial year), compounded annually, on the Unreturned Capital Contributions with respect to such Class I Unit (whether contributed by the current holder or the original holder of the Units), over (ii) the aggregate amount of Preferred Return accrued with respect to such Class I Unit through such date. The Secondary Return shall accrue beginning on the date the related Capital Contribution is made to the Company. In addition, by virtue of the annual compounding of the Secondary Return, the Secondary Return shall continue to accrue, notwithstanding that there have been partial, or even full, returns and distributions of Capital Contributions to the holders of Class I Units pursuant to the terms of this Agreement, until the entire amount of all accrued but unpaid Secondary Return has been distributed to the holders of Class I Units as appropriate.

“Secondary Return Excess” has the meaning set forth in Section 9.03(b).

“Secretary of State” means the office of the Department of the Secretary of State of the State of Delaware.

“Securities Act” means the federal Securities Act of 1933, as amended, and the rules and regulations thereunder.

“Special REIT Restrictions” shall have the meaning given to such term in Section 8.05 of this Agreement.

“Sponsor Group” means and includes each Initial Member, Clifton Minsley, Bradford Minsley, and any Entity that is Controlled, either singly or jointly, by one or more of the Initial Members, Clifton Minsley, or Bradford Minsley, and includes, as of the Effective Date, 10F Manager and Sponsor Member.

“Sponsor Member” means 10FSSAC5 Sponsor, LLC, a North Carolina limited liability company, which as of the Effective Date is the sole Class S Member of the Company.

“Subsequent Closing” has the meaning set forth in Section 3.03 below.

“Subsequent Closing Date” means the date of the applicable Subsequent Closing.

“Subscription Agreement” means each Subscription Agreement by and between the Company and a Class I Member providing for the terms related to such Member’s subscription for Class I Units.

“Subsidiary” means, with respect to the Company, any other Entity in which the Company either (i) owns or Controls, directly or indirectly, fifty percent (50%) or more of the outstanding voting shares or other voting equity or beneficial interests, or in respect of which the Company or one or more other Subsidiaries has the right or ability to elect a majority of the members of such Entity’s board of directors or any counterpart thereto for noncorporate Entities, or otherwise has the right or ability to Control the management of such Entity, or (ii) owns or Controls, directly or indirectly, fifty percent (50%) or more of the value of the outstanding stock or other equity or beneficial interests determined on a fully diluted basis.

“Tax Distributions” has the meaning set forth in Section 4.02(c) below.

“10F Manager” means 10FSSAC5 Manager, LLC, a North Carolina limited liability company.

“10F Member” means (i) owners, employees, or other service providers of any member of the Sponsor Group or their Affiliates (including, for the avoidance of doubt, 10 Federal Partners, Inc.), and their related family members, estate planning vehicles and affiliates and (ii) any other Member designated by the Manager as a “10F Member” with the consent of such Member.

“10FSSAC5 Master” means 10FSSAC5 Master, LLC, a Delaware limited liability company.

“10FSSAC5 REIT” means 10FSSAC5 REIT, LLC, a Delaware limited liability company.

“10FSSAC5 TRS” means 10FSSAC5 TRS, LLC, a Delaware limited liability company.

“Term Date” has the meaning set forth in Section 2.07(a) below.

“Transferor” has the meaning set forth in Section 8.01(b) below.

“Ultimate Percentage” means the proportionate participation rights, expressed as a percentage, of each holder of Class I Units and Class S Units relative to the other holders of Class I Units or Class S Units with respect to the receipt of certain distributions and allocations, as set forth in this Agreement. At all times, the total Ultimate Percentages for all outstanding Class I Units and Class S Units will equal one hundred percent (100%). The Percentage Interests with respect to each Class will be as follows.

(i) The holders of Class I Units will possess total Ultimate Percentages equal to sixty percent (60%), and such total Ultimate Percentages for all Class I Units will be apportioned among the holders thereof in proportion to their respective numbers of Class I Units.

(ii) The holders of Class S Units will possess total Ultimate Percentages equal to forty percent (40%), and such total Ultimate Percentages for all Class S Units will be apportioned among the holders thereof in proportion to their respective numbers of Class S Units.

“Unit” means each of the Units, which collectively constitute all of the Interests in the Company. Each individual Unit constitutes a fractional part of the Interest of each Member in the Company representing the relative interest, rights and obligations a Member has with respect to certain economic rights, voting, and other items pertaining to the Company as set forth in this Agreement. Unless otherwise provided herein, references in this Agreement to “Units” of a Member include all or the portion of such Member’s Interest that is represented by or attributable to, or otherwise relates to, such Units. Whole, as well as fractional, numbers of Units may be issued by the Company and/or owned by Members and other transferees of Units. Each Member’s numbers of Units are set forth in Exhibit C attached hereto, as such Exhibit C may be amended from time to time to reflect transfers or additional issuances of Units in accordance with the terms of this Agreement. As of the Effective Date, the Company has two authorized Classes of Units: Class I Units and Class S Units.

“Unreturned Capital Contributions” means, with respect to any Unit on any day, an amount equal to the excess, if any, of (A) the Capital Contributions attributable to the Unit as of such date over (B) the aggregate distributions, if any, by the Company with respect to such Unit pursuant to Sections 4.02(b)(ii) or 9.03 of this Agreement (including, for the avoidance of doubt, any Tax Distributions treated as a prepayment of distributions pursuant to Sections 4.02(b)(ii) or 9.03).

1.02 Successor Statutes and Agencies; Global Terms. Any reference contained in this Agreement to specific statutory or regulatory provisions or to specific governmental agencies or Entities includes any successor statute or regulation, or agency or Entity, as the case may be. Unless otherwise specified, the references to “Section” and “Article” in this Agreement are to the Sections and Articles of this Agreement. When used in this Agreement, words such as “herein”, “hereinafter”, “hereof”, “hereto”, and “hereunder” refer to this Agreement as a whole, unless the context clearly requires otherwise. The use of the words “include” or “including” in this Agreement is by way of example rather than by limitation.

ARTICLE II ORGANIZATION, OFFICES, PURPOSE, AND TERM

2.01 Formation and Organization. The Company was formed as a limited liability company pursuant to the Act on March 13, 2025, upon the filing of the Certificate of Formation of the Company with the Secretary of State. The Initial Members were admitted as Members of the Company on or before the Effective Date, and such Persons, being the only Members of the Company as of the Effective Date, hereby set forth and adopt this Agreement as the limited liability company agreement of the Company in its entirety under the Act. After the Effective Date, additional Persons shall be admitted as Members of the Company as of the effective date that each such additional Member’s subscription for Units and signature page to this Agreement are accepted by the Management on behalf of the Company and such Member otherwise complies with the provisions of this Agreement. Upon each admission of such new Members, Exhibit C shall be amended by the Management to include each additional Member’s name and the number of Units issued to such Member.

2.02 Limited Liability Company Agreement. The Members and the Company hereby execute and deliver this Agreement for the purpose of governing and regulating the affairs of the Company and the conduct of its business in accordance with the provisions of the Act. It is hereby agreed that during the term of the Company set forth in Section 2.07, all provisions of the Company’s “limited liability company agreement” (within the meaning of the Act) must be in writing or otherwise adopted in accordance with this Agreement, the rights and obligations of Members with respect to the Company will be determined in accordance with the terms and conditions of this Agreement to the greatest extent permitted by law, and where the Act provides for rights and obligations specified in the Act that differ from or are inconsistent with the rights and obligations set forth in this Agreement, such rights and obligations shall be as set forth in this Agreement rather than as set forth in the Act to the greatest extent permitted by law.

2.03 Name. The Company’s operations shall be conducted under the name “10FSSAC5-A, LLC”; provided, however, that (i) the name of the Company may be changed upon the approval of a Majority in Interest of the Class S Members, and (ii) the operations of the Company may be conducted under any other name deemed necessary or desirable by the Management or as may be necessary to comply with the requirements of any jurisdiction in which the Company may conduct operations.

2.04 Offices and Registered Agent. The principal office of the Company shall be located at such place as may be determined by the Management. In addition, the Company may maintain such other offices as the Management may deem advisable at any other place or places.

The initial registered office of the Company is at 1209 Orange Street, Wilmington, New Castle County, Delaware 19801, and the initial registered agent of the Company for service of process at such address is The Corporation Trust Company. The Management may change the registered agent and registered office of the Company to such other agent or office as may be permitted under the Act, upon satisfaction of the requirements for making such a change as are set forth under the Act.

2.05 Purpose.

(a) The principal purpose and business of the Company is to engage in the activities and transactions set forth in or approved pursuant to Section 2.06 and to do all things and engage in all activities and business in connection therewith permitted under applicable Delaware law.

(b) The Company has any and all powers that are necessary or desirable to carry out the purposes and business of the Company, to the extent the same may be legally exercised by limited liability companies under the Act. The Company shall carry out the foregoing activities pursuant to the provisions set forth in the Certificate of Formation and this Agreement.

2.06 Approved Transactions. The transactions set forth below in this Section are expressly authorized in fulfillment of the Company's business and purposes as set forth under Section 2.05 above, and shall be effectuated in accordance with the terms generally described below. These approved transactions shall in no way limit the purposes of the Company or transactions otherwise approved by the Company as provided in this Agreement.

(a) The Company is expressly authorized, directly or indirectly through one or more Subsidiaries or other Affiliate Entities thereof (including a real estate investment trust), to purchase, acquire, build, renovate, develop, expand, hold, operate, insure (including insurance coverage provided by any member of the Sponsor Group or any Affiliate of such member) and subsequently sell or otherwise exchange or transfer self-storage facilities in the Eastern United States (or other facilities or properties, including retail facilities or properties with current tenants, that may be converted, currently or in the future, into self-storage facilities) or debt or equity interests or investments in such properties or in Entities engaging in such activities, including any distressed assets or distressed debt (each such property or asset of the Company is referred to herein as an "Investment Property").

(b) Subject to the actions requiring Member approval set forth in Sections 5.01(b) or 5.01(c) or in this Section 2.06(b), the Management (and the Management of the Parallel Company) will be responsible for all investment decisions of the Company, including the identification of each Investment Property, the price and other material terms associated with the acquisition of an Investment Property, the operation of the Investment Properties, and the timing, price and other material terms associated with the sale or other disposition of an Investment Property. In accordance with Section 5.01(e), the Management may, but is not required to, contract with or delegate to any other Person any powers or authority granted to it under this Section 2.06. Except for the fees described in Section 5.08 and Section 5.09, the

Management shall receive no other compensation for the responsibilities and serving in the capacity described in this Section 2.06, unless such compensation is otherwise preapproved by a Majority in Interest of the Class S Members.

(c) Subject to any approval required of the Class S Members as set forth above or otherwise in this Agreement, the Company, through the Management, is hereby authorized and directed to do all acts or things reasonably necessary or appropriate to consummate the foregoing transactions approved in this Section 2.06 and any action reasonably incidental thereto. This authority shall include, without limitation, the right to execute any and all documents the Management deems necessary in connection therewith, including, without limitation, promissory notes, deeds of trust, financing statements, security agreements, agreements, contracts, checks, and other instruments and documents as the Management deems necessary under the circumstances to consummate the transactions approved in this Section 2.06. In connection therewith, third parties shall be entitled to rely upon any such documents or instruments executed by the Management in accordance with the provisions of this Agreement.

2.07 Term.

(a) The term of the Company commenced on March 13, 2025, the effective date of the filing of the Certificate of Formation of the Company with the Secretary of State pursuant to the Act. The Company shall continue until it dissolves on the close of business on March 31, 2032 (the “Term Date”), unless (i) its term is extended as set forth in Section 2.07(b) below, or (ii) the Company is sooner dissolved and its affairs wound up in accordance with the provisions of this Agreement or the Act.

(b) A Majority in Interest of the Class S Members may elect and determine to extend the term of the Company for up to two (2) additional one-year periods beyond the Term Date. The Management shall give prompt written notice of any extension, in accordance with Section 10.11, to all of the Members.

2.08 Income Tax Classification of Company. At such time or times as the Company may be treated for purposes of federal income taxation as having more than one owner, the Company shall be classified as a partnership for purposes of federal income taxation in accordance with Regulations section 301.7701-3.

2.09 Nature of Units and Interests. The Interests and Units in the Company shall be personal property for all purposes. Legal title to all Company assets shall be held in the name of the Company. No Member and no successor, representative, or assignee of any Member has any right, title, or interest in or to any Company property or the right to partition any real property owned by the Company. Interests or Units may, but need not necessarily, be evidenced by a certificate of ownership interest issued by the Company, in such form as the Management may determine. As of the date of this Agreement, the capital structure of the Company shall consist of two (2) Classes of authorized Units: Class I Units and Class S Units. The Company’s Classes of Units will have the relative rights, privileges, preferences, restrictions, and limitations as provided in this Agreement. Class S Units are and will be voting Units, and the Members holding Class S Units shall have the right to vote on all issues presented to the Members of the

Company. Except as otherwise provided by law or in this Agreement, the Class I Units shall be nonvoting Units, and the Members holding Class I Units shall not have the right to vote on any issues presented to the Members of the Company with respect to such Members' Class I Units.

2.10 Parallel Company. Each Member hereby acknowledges and agrees that (i) the Sponsor Group or its Affiliates have formed the Parallel Company to invest, directly or indirectly through one or more Subsidiaries or other Affiliate Entities (including a real estate investment trust), in Investment Properties in parallel with the Company, and (ii) the provisions of the Parallel Company Limited Liability Company Agreement may differ from the provisions of this Agreement. Any expenses (including Company Expenses) of the Company and the Parallel Company that are not applicable solely to the Company or the Parallel Company will be treated as incurred by the Company and the Parallel Company using any allocation method the Management (and the Management of the Parallel Company) determines, in good faith, would be fair or equitable.

ARTICLE III MEMBERS, UNITS, AND CAPITAL CONTRIBUTIONS

3.01 Class I Members Admission, Capital Contributions and Units.

(a) Subject to the limitations set forth in this Article III and elsewhere in this Agreement, at the Initial Closing or any Subsequent Closing, any Person who has (i) agreed in writing to a Capital Contribution in an amount at least equal to \$100,000 (or such lower amount acceptable to the Management in its sole discretion), (ii) executed and delivered to the Management a copy of the Subscription Agreement setting forth the Person's amount of, and commitment to make a, Capital Contribution (a "Capital Commitment"), and (iii) executed and delivered to the Management a copy of this Agreement, may be admitted to the Company as a Class I Member when and as determined by the Management. Each Member shall contribute capital to the Partnership in cash (or property, but only to the extent approved and agreed by the Management) as requested by the Manager upon ten (10) business days' prior written notice; provided, however, that except as otherwise specifically provided in this Agreement, no Member will be required to make aggregate Capital Contributions in excess of its Capital Commitment. The Company shall be entitled to enforce the obligations of each Member to make any portion of an unfunded Capital Commitment to the Company, and the Company will have all remedies set forth in Section 3.11 or otherwise available at law or in equity in the event any such Member fails to timely make a Capital Contribution when due.

(b) Set forth beside the name of each Class I Member on Exhibit C attached hereto is each Class I Member's agreed Capital Commitment to the Company. Each Class I Member's Capital Commitment represents the aggregate amount of cash (or value of other property, to the extent approved and agreed by the Management) that such Class I Member has agreed to contribute to the Company in accordance with the terms hereof. Unless a Class I Member otherwise agrees in writing, a Class I Member is not obligated to contribute capital to the Company in excess of its Capital Commitment; provided, however, that the Initial Members and other members of the Sponsor Group are subject to satisfying, in the aggregate, the minimum Capital Contribution levels set forth in Section 3.06 below.

(c) Upon receipt by the Company and the Parallel Company of Aggregate Capital Commitments of at least \$5,000,000 (inclusive of the Initial Members' Capital Contributions in respect of Class I Units), the Company may hold an initial closing of (i) the issuance of Class I Units to Persons other than the Sponsor Group and (ii) the admission of such Persons as Class I Members (as applicable) to the Company (the "Initial Closing"). The Management shall promptly provide each Member with written notice (which may include email or other electronic communications) of the consummation of the Initial Closing.

(d) Notwithstanding anything in this Agreement to the contrary, for as long as any holder of Class I Units is subject to ERISA, the Management shall use commercially reasonable efforts to prevent the equity participation by ERISA Investors in any Class of Interests that would be "significant" equity participation as defined in the Plan Asset Regulations. The Management, in its sole discretion, may prohibit any ERISA Investor from making some or all of any proposed Capital Contributions at any time, whether at or after the Initial Closing, if the payment of such Capital Contribution would be reasonably likely to cause the Company to hold "plan assets" under ERISA and regulations thereunder or applicable state laws, regulations and administrative policies similar in purpose and intent to ERISA and the regulations thereunder.

3.02 Liability of Members. A Member shall not be liable for the debts, liabilities, or obligations of the Company beyond the Capital Contributions the Member has made or has agreed to make in writing, or as provided in Section 4.04(c) with respect to a share of any LLC Tax Cost; provided, however, that a Member or Affiliate of a Member may voluntarily agree, but is not required under this Agreement, to guarantee all or any portion of an indebtedness or obligation of the Company or any Subsidiary or other Affiliate of the Company. Except as otherwise expressly provided herein, a Member shall not be required to contribute to the capital of, or to loan any funds to, the Company.

3.03 Admission of Additional Class I Members; Increases in Capital Commitments. Subject to the provisions of this Agreement and at any time until and through the second anniversary of the Initial Closing Date, or such later date (though not beyond the third anniversary of the Initial Closing Date) as may be approved by a Majority in Interest of the Class S Members (the later of such dates, the "Capital Raise End Date"), the Management may, but is not obligated to, accept increases in Capital Commitments from any of the Class I Members and to select and admit to the Company additional Class I Members (each, a "Subsequent Closing"). Each Person that is to be admitted as an additional Class I Member pursuant to this Section 3.03 shall execute a joinder to this Agreement providing for such admission, and upon the admission of a new Class I Member or an increase in a Member's Capital Commitment, Exhibit C shall be amended by the Management, without any requirement for the consent of the Members, to document the admission of such new Class I Member and/or the increase in Capital Commitment. The maximum Aggregate Capital Commitments that may be collectively accepted by the Company and the Parallel Company will be One Hundred Fifty Million Dollars (\$150,000,000), or such greater amount (not to exceed Three Hundred Million Dollars (\$300,000,000) in total) as may be otherwise approved by a Majority in Interest of the Class S Members.

3.04 Issuance of Class I Units.

(a) Except in the case of Additional Capital Contributions (to which the terms in Section 3.10 will apply), upon admission to the Company of a Class I Member or the effective date of an increase in an existing Class I Member's Capital Commitment, such Class I Member shall be issued a number of Class I Units (including fractional Units, if need be) equal to the dollar amount of initial or increased Capital Commitment, as the case may be, divided by one thousand (1,000). Notwithstanding the foregoing sentence but subject to Section 3.04(b), for any such Class I Units issued after the second anniversary of the Initial Closing Date (other than pursuant to Section 3.10), the Company may, but is not required to, issue such Units at a price other than one thousand dollars (\$1,000) per Class I Unit if the Management, in its good-faith discretion, determines such a different issuance price to be fair and appropriate to the Members, and the Management will determine such other price based on either a Broker's Opinion of Value or an appraisal of the Company and its assets conducted by an MAI-certified appraiser, with such broker or MAI-certified appraiser selected in good faith by the Management. Issuance of the Class I Units shall be deemed effective upon receipt and acceptance by the Company of such Class I Member's initial or increased Capital Commitment. The name, address, number of Class I Units, and Capital Commitment with respect to each Class I Member shall be set forth on Exhibit C attached hereto, which Exhibit may be amended by the Management without obtaining the consent or approval of the Members as of the effectiveness of any transfer or issuance of any Interest or Units, or increase in Capital Commitment, that is in accordance with this Agreement. Subject to the Act, the rights, benefits and obligations granted or imposed upon the Class I Units shall be as set forth in this Agreement.

(b) The Company will not exercise its discretion pursuant to Section 3.04(a) to issue any Class I Units at a price lower than one thousand dollars (\$1,000) per Class I Unit ("Reduced Price Units") without first complying with this Section 3.04(b). The Company hereby grants to each Class I Member the preemptive right to purchase, subject to the terms below, all or any part of any such Reduced Price Units that the Company may from time to time propose to issue. In the event the Company proposes to issue or sell Reduced Price Units, it shall give each Class I Member written notice of its intention, describing the price and terms upon which the Company proposes to issue or sell such Reduced Price Units (a "Notice"). Each Class I Member will have fifteen (15) days from the date of receipt of any such Notice to agree to purchase up to such Member's respective pro rata share of such Reduced Price Units upon the terms specified in the Notice by giving written notice to the Company, at such address as is set forth in the Notice, stating the number of such Reduced Price Units that the Member agrees to purchase. In the event any of the Class I Members fails to exercise such preemptive right, in whole or in part, within such fifteen (15)-day period, the other Class I Members fully exercising their preemptive rights, if any ("Fully Exercising Members"), will have an additional five (5)-day period to purchase the Member's unexercised share of such Reduced Price Units, pro rata based on the Fully Exercising Members' respective numbers of Class I Units. Thereafter, the Company may issue pursuant to Section 3.04(a) any Reduced Price Units that are not elected to be purchased by the Members pursuant to this Section 3.04(b) at the same price and upon the same terms and conditions specified in the Notice.

3.05 Class S Member and Capital Contributions. As of the Effective Date, Sponsor Member is the sole Class S Member and has been issued the number of Class S Units and Class I Units set forth beside its name on Exhibit C attached hereto. Such Units are issued in consideration (i) for an agreed Capital Commitment by Sponsor Member in the amount set forth besides its name on Exhibit C attached hereto, and (ii) of the duties, obligations, and services of the Class S Member for and with respect to the Company as set forth under this Agreement. Subject to the Act, the rights, benefits and obligations granted or imposed upon the Class S Units shall be as set forth in this Agreement.

3.06 Sponsor Group Class I Capital Contributions. The Sponsor Group and 10F Members shall collectively be obligated to make aggregate Capital Contributions and Parallel Company Capital Contributions in an amount at least equal to the greater of (i) five hundred thousand dollars (\$500,000) and (ii) two and one-half percent (2.5%) of the aggregate Capital Contributions and Parallel Company Capital Contributions made with respect to all Class I Units in the Company or the Parallel Company (the “Sponsor Minimum”). For the avoidance of doubt, such aggregate Capital Contributions and Parallel Company Capital Contributions required to be made by the Sponsor Group and 10F Members may be made between and among the Company and the Parallel Company in such ratios as determined by the Management (and the Management of the Parallel Company) in their sole discretion. If additional Capital Contributions are required from the Sponsor Group or 10F Members to satisfy the Sponsor Minimum, then Sponsor Member, or such other 10F Member(s) or member(s) of the Sponsor Group as may be identified by a Majority in Interest of the Class S Members (each such Person being a “Sponsor Group Contributor”), shall make additional Capital Contributions or Parallel Company Capital Contributions in cash or, in the case of a member of the Sponsor Group and at such Person’s election, property as may be necessary to satisfy the Sponsor Minimum in full. Any Capital Contribution made pursuant to this Section 3.06 (or Parallel Company Capital Contribution made pursuant to an equivalent section of the Parallel Company Limited Liability Company Agreement) by a member of the Sponsor Group may be made in cash or in kind. If any portion of such a Capital Contribution or Parallel Company Capital Contribution by a member of the Sponsor Group will be made in property other than cash, the value of such property for purposes of this Agreement will be determined as provided in Section 3.06(a) or (b) below. Any Capital Contributions made pursuant to this Section shall (i) be made by Sponsor Member, or other designated 10F Member(s) or member(s) of the Sponsor Group, at the same time or times that Capital Contributions or Parallel Company Capital Contributions are made that result in the Sponsor Minimum not otherwise being satisfied absent the additional Sponsor Group or 10F Member contributions, and (ii) subject to the limitation in Section 3.04(b), be made in exchange for the Company’s (or Parallel Company’s, as applicable) issuance of additional Units to the contributing 10F Member(s) or member(s) of the Sponsor Group on the same basis that the Company (or Parallel Company, as applicable) issues Units to other Persons making Capital Contributions or Parallel Company Capital Contributions that are not 10F Members or members of the Sponsor Group. Notwithstanding anything in this Agreement to the contrary, the Sponsor Group and 10F Members may make capital contributions to the Operating Partnership (“Operating Partnership Contributions”), and any such Operating Partnership Contributions will be treated as a Capital Contribution for purposes of meeting the Sponsor Minimum.

(a) Fair Market Value of Recently Acquired Property. If the property contributed by any Sponsor Group Contributor pursuant to Section 3.06 consists, in whole or in part, of property other than cash (such noncash portion of such contributed property, the “Noncash Contributed Property”), and such Noncash Contributed Property was acquired by the Sponsor Group Contributor or an Affiliate thereof from an unrelated third party within the six-month period ending on the date the Capital Contribution will be made, then the value of such Noncash Contributed Property for purposes of determining the amount of Capital Contribution and whether the Sponsor Minimum is satisfied will be the purchase price paid by such Sponsor Group Contributor (or Affiliate thereof) for such Noncash Contributed Property, plus all reasonable transaction costs incurred by such Sponsor Group Contributor (or Affiliate thereof) in connection with the acquisition of such Noncash Contributed Property.

(b) Fair Market Value of Other Noncash Contributed Property. If the Noncash Contributed Property was acquired from a related party or from an unrelated third party by the applicable Sponsor Group Contributor (or Affiliate thereof) more than six months before the date the Noncash Contributed Property will be contributed to the Company, then the value of such Noncash Contributed Property will be determined by either a Broker’s Opinion of Value or an appraisal conducted by an MAI-certified appraiser, with such broker or MAI-certified appraiser selected in good faith by the Management, which determination shall be conclusive and binding on the Company, the Members, and the Management.

3.07 Withdrawal or Reduction of Contributions to Capital.

(a) Generally No Withdrawal. No Member has the right to withdraw all or any part of his, her, or its Capital Contributions or to receive any return on any portion of his, her, or its Capital Contributions, except as expressly set forth in Sections 3.07(c), 3.07(d), 4.02 or 9.03, or as elsewhere clearly specified herein. Under circumstances involving a return of any Capital Contributions, no Member has the right to receive property other than cash or cash equivalents; provided, however, that no Member has the right to refuse an in-kind distribution of property.

(b) Generally No Priority in Capital Contributions. Except as may be otherwise set forth in Article IV or Exhibit B hereto or as specified in Sections 3.07(c) or 3.07(d) below, no Member has priority over any other Member, either as to the return of Capital Contributions or as to Net Income, Net Loss, or distributions; provided, however, that this subsection shall not apply to loans (as distinguished from Capital Contributions) that a Member has made to the Company.

(c) Mandatory Sale or Redemption. The Management may, by written notice to any holder of Class I Units, require the Class I Units of such holder to be fully or partially sold or redeemed by the Company pursuant to this Section 3.07(c), effective on any date designated by the Management (which shall be not less than ten (10) days after delivery of the notice of mandatory withdrawal), in the event the Management determines in good faith or has reason to believe that: (i) ownership of the Class I Units by such holder will cause the Company to be in violation of the securities laws of the United States or any other relevant jurisdiction; or (ii) continued ownership of Class I Units by such holder may be harmful or injurious to the

business or reputation of the Company or the Management or may subject the Company or any of the Members to an undue risk of adverse tax or other fiscal consequences, including, without limitation, causing the Company to hold “plan assets” under ERISA and the Plan Asset Regulations or investment in the Company by “benefit plan investors” to be “significant” (each as defined in the Plan Asset Regulations) or other adverse consequences under ERISA. The amount due to any such holder of Class I Units required to be sold or redeemed from the Company pursuant to this Section 3.07(c) shall be the fair market value of such Class I Units as of the effective date of the sale or redemption using the methodology set forth in Section 3.07(d) below, with such value to be as determined in good faith by the Management. Upon a sale and/or redemption of all of the Units of any Member pursuant to this Section 3.07(c), such Person shall be withdrawn as a Member of the Company.

(d) Withdrawal of ERISA Investors.

(i) Notwithstanding any provision of this Agreement to the contrary, any ERISA Investor may elect to withdraw from the Company, or upon demand by the Management, any ERISA Investor shall withdraw from the Company, at the time and in the manner hereinafter provided, if either such ERISA Investor or the Management obtains an opinion of counsel (which counsel and opinion of counsel must be reasonably acceptable to the Management and the ERISA Investor) to the effect that it is more likely than not that, (A) by reason of such ERISA Investor’s continued ownership of Class I Units, the Company, the Management or the ERISA Investor would be in violation of ERISA, the Code or rules or regulations promulgated thereunder, or any other statute or governmental regulation, or (B) in the case of any withdrawal by an ERISA Investor, the fiduciaries of such ERISA Investor (or fiduciaries of any employee benefit plan the assets of which are held by such ERISA Investor and have been used to fund Capital Contributions, as applicable) would have liability for the acts or omissions of the Management, notwithstanding the provisions of section 405(d) of ERISA.

(ii) Thereafter, the Management and such ERISA Investor, to the extent practicable as determined by the Management in its discretion, shall use their reasonable best efforts to effectuate either (A) an amendment (with the consent of the Members, to the extent required by Section 10.01 hereof) to this Agreement that, in the opinion of such counsel, would enable compliance with ERISA without withdrawal of such ERISA Investor from the Company, or (B) a transfer of such ERISA Investor’s Class I Units to a transferee that is reasonably deemed by the Management to be a substantial and sophisticated investor at a price and on other terms and conditions that are mutually agreeable to such ERISA Investor, the Management and the transferee.

(iii) If a transfer is not arranged or the cause for withdrawal is not cured within one hundred twenty (120) days (or such longer period as may be mutually agreed by such ERISA Investor and the Management) after the date of delivery of the opinion of counsel and the election or demand for withdrawal, then such ERISA Investor shall withdraw from the Company as of the date following the expiration of such period that is the earlier of (A) the last day of the calendar year during which the election or demand for withdrawal is made, and (B) such date for withdrawal, if any, as may be specified by counsel in such opinion as being necessary to mitigate violation of ERISA. In the event the effective date of an ERISA Investor’s withdrawal is a date

other than the last day of a calendar year, the effective date of such ERISA Investor's withdrawal shall be deemed to be the last day of the calendar year for purposes of adjusting the Capital Account of the withdrawing ERISA Investor. The withdrawing ERISA Investor shall not be required to make any Capital Contributions. At such time, the withdrawing ERISA Investor shall cease to be a Member of the Company for all purposes and, except for its right to receive payment for its Class I Units as hereinafter provided, shall no longer be entitled to the rights of a Member under this Agreement, including, without limitation, the right to have any allocations made to its Capital Account, the right to receive distributions during the term of the Company or upon liquidation of the Company pursuant to Section 9.03, and the right to vote on Company matters as provided in this Agreement.

(iv) In full satisfaction of its Class I Units, the withdrawing ERISA Investor shall be entitled to receive a distribution from the Company equal to the amount that such ERISA Investor would have been entitled to receive pursuant to Section 9.03 if (A) the Company had been liquidated on and as of the effective date of such ERISA Investor's withdrawal, (B) all of the assets of the Company had been sold on and as of such date at their then fair market value (as determined by the Management or, at the request of the withdrawing ERISA Investor, an independent appraiser, with one half of the cost of such appraisal borne by each of the withdrawing ERISA Investor and the Company, and taking into account the nature and timing of any forced sale) and (C) all gains and losses that would have arisen from such sale had been allocated among the Capital Accounts of the holders of Units in accordance with Exhibit B hereto. Such distribution shall be payable in cash or other assets, distributed to the withdrawing ERISA Investor on a basis that is, to the extent practicable, *pro rata* in accordance with such ERISA Investor's Class I Units, unless otherwise required by law or contract. The Management shall take commercially reasonable steps to liquidate such Company assets, as it determines appropriate in its discretion, as may be necessary to satisfy such distribution obligation, and distribute to such withdrawing ERISA Investor the amounts payable under this Section 3.07(d) within a reasonable time of the effective date of withdrawal. No approval of the Class I Members shall be required prior to the sale of any Company assets or the making of such distribution. No distribution will be made with a security or other asset that would perpetuate the reason for the withdrawal.

(v) An ERISA Investor electing to withdraw from the Company pursuant to this Section 3.07(d) shall bear the costs of obtaining or seeking an opinion of counsel for purposes of this Section 3.07(d), whether or not such opinion is to the effect specified above or results in the withdrawal of the ERISA Investor, and the Company shall bear such costs if the Management demands the withdrawal of an ERISA Investor pursuant to this Section 3.07(d).

3.08 Capital Accounts. The Company shall maintain separate capital accounts (each a "Capital Account") for each Class I Member and Class S Member pursuant to the principles of this Section 3.08 and Regulations section 1.704-1(b)(2)(iv). In the maintenance of Capital Accounts for the Members, the following provisions shall apply.

(a) Each Member's Capital Account shall be increased by the amount of any cash and the agreed fair market value of any other property contributed by such Member as an additional Capital Contribution, such Member's distributive share of Net Income, any other

items in the nature of income or gain that are specially allocated to such Member pursuant to Exhibit B to this Agreement, and the amount of any Company liabilities that are assumed by such Member or that are secured by any Company property distributed to such Member.

(b) Each Member's Capital Account shall be decreased by the amount of cash and the fair market value of any other Company property distributed to such Member pursuant to any provision of this Agreement, such Member's distributive share of Loss and Net Loss, any other items in the nature of deduction or loss that are specially allocated to such Member pursuant to Exhibit B to this Agreement, and the amount of any liabilities of such Member that are assumed by the Company or that are secured by any property contributed by such Member to the Company.

(c) Upon the transfer of all or any portion of any Member's Units in accordance with the terms of this Agreement, the transferee shall succeed to the Capital Account of the transferor to the extent that it relates to the transferred Units.

(d) The provisions of this Section 3.08 and other portions of this Agreement relating to allocations and the proper maintenance of Capital Accounts are designed and intended to comply with the requirements of Regulations section 1.704-1(b). The Members intend that such provisions be interpreted and applied in a manner consistent with such Regulations. The Management is authorized to modify the manner in which the Capital Accounts are maintained if the Management determines, after consultation with the Company's tax advisors, that such modification (i) is required or prudent to comply with the Regulations and (ii) is not likely to have a material adverse effect on the amounts distributable to any Member of the Company.

3.09 Additional Funds. If a Majority in Interest of the Class S Members determines at any time (or from time to time) that additional funds are required by the Company or any Subsidiary for or in respect of its business or to pay any of its obligations, expenses, costs, liabilities, or expenditures (including, without limitation, any operating deficits), then the Management may cause the Company or Subsidiary to (i) borrow all or part of such additional funds, with interest payable at then-prevailing rates, from one or more of the Members or from commercial banks, savings and loan associations, other commercial lending institutions, or other third parties or (ii) without limiting the foregoing, enter into any mezzanine financing arrangement on terms determined by the Management in its sole discretion.

3.10 Additional Capital Contributions. If a Majority in Interest of the Class S Members determines that additional funds are required for the purposes set forth in Section 3.09 above, all Capital Commitments have been called, and all or any portion of such additional funds should be contributed to the Company as additional Capital Contributions, the Management may request that the Members make additional Capital Contributions (each a "Capital Call"). If a Majority in Interest of the Class S Members approves such Capital Call, then each of the Class I Members may, but shall not be obligated to, make such additional Capital Contributions (each an "Additional Capital Contribution") to the Company, with such Additional Capital Contributions to be made ratably in proportion to the Members' aggregate then-existing numbers of Class I Units. The Additional Capital Contributions shall be made within the time period and under such procedures as the Management sets.

(a) If any Class I Member indicates that it will not make or is unable to timely make all of its proportionate Additional Capital Contribution (the “Noncontributing Member”), owners of more than fifty percent (50%) of the total number of Class I Units (held by the Members that will make their full amount of Additional Capital Contribution (the “Contributing Members”) may, but shall not be obligated to, make Additional Capital Contributions up to the aggregate amount that could have been contributed by each Noncontributing Member.

(b) If the Contributing Members elect to make all or part of an Additional Capital Contribution not made by any Noncontributing Member, the amount each Contributing Member shall make will be as they may agree among themselves. If they are unable to agree, each Contributing Member shall have the primary right to make that portion of the Additional Capital Contribution not made by each Noncontributing Member equal to the proportion that its number of Class I Units bears to the aggregate number of Class I Units of all Contributing Members, and a secondary right to contribute any remaining portion that is not desired to be contributed by any other Contributing Members in the exercise of their primary rights. If there is more than one Contributing Member desiring to exercise secondary rights, they shall be entitled to make the remaining portion of the Additional Capital Contribution not made by the Noncontributing Member in the same proportions as stated above with regard to their primary rights, unless and except as they all otherwise agree.

(c) In exchange for any Additional Capital Contribution made by a Member, the Company shall issue such Member Class I Units on the basis of one additional Class I Unit (including fractional Units, if and as appropriate) for each seven hundred fifty dollars (\$750) of Additional Capital Contribution.

3.11 Default. Failure of a Member to make a Capital Contribution on or before the date specified in any capital call issued pursuant to Section 3.01(a) will be a “**Default**”. Upon a Default, the Manager may in its sole discretion, elect to enforce one or more of the following provisions in respect of the defaulting Member (in addition to any other remedies available at law or in equity): (a) the Manager may offset distributions otherwise payable to the defaulting Member to fund the defaulting Member’s unpaid Capital Contributions and to fund reserves for future Capital Contributions due from such defaulting Member up to the aggregate amount of the defaulting Member’s unpaid Capital Commitment (with all such amounts being deemed distributed to the defaulting Member for all purposes of this Agreement); (b) the Manager may initiate appropriate legal proceedings in the name of the Company against the defaulting Member to recover payments of amounts due and expenses in collecting such amounts, including attorneys’ fees (and no such payment of such expenses will be treated as Capital Contributions to the Company for purposes of this Agreement); (c) the Manager may cause the Company to charge the defaulting Member interest at a rate equal to the lesser of (i) 18% per annum, compounded monthly, and (ii) the maximum interest rate permitted by law, on the amounts owed; (d) the Manager may allow one or more non-defaulting Members to make loans to the defaulting Member at a rate equal to the lesser of (i) 18% per annum, compounded monthly, and (ii) the maximum interest rate permitted by law, to be repaid from the distributions otherwise payable to the defaulting Member (with such distributions being deemed to have been first made

to the defaulting Member and then paid to the other Members in repayment of their loans); and/or (e) the Manager may terminate the balance of the defaulting Member's unfunded Capital Commitment and prohibit such defaulting Member from making additional Capital Contributions to the Company, and in such case the defaulting Member shall forfeit, without any further action by the Company, an amount of Class I Units equal to (a) the aggregate Class I Units held by such defaulting Member, multiplied by a fraction, the numerator of which is (x) the amount by which the Manager reduces the defaulting Member's Capital Commitment, and the denominator of which is (y) the defaulting Member's Capital Commitment prior to such reduction. The Members agree that the Manager's authority and discretion to enforce any remedy against a defaulting Member (including but not limited to the remedies set forth in this Section 3.11) supersede any fiduciary duties of the Manager otherwise owing to such defaulting Member. The Members further agree that the remedies set forth in this Section 3.11 are fair and reasonable in light of the difficulty in ascertaining the actual damages that would be incurred by the Company and the non-defaulting Members as a result of the defaulting Member's failure to contribute capital when due pursuant to the terms of this Agreement.

ARTICLE IV ALLOCATIONS AND DISTRIBUTIONS

4.01 Allocations. The Company's Net Income, Net Loss, and other items of income, gain, loss, or expense shall be allocated to and among the Members as provided in Exhibit B attached hereto.

4.02 Distributions. Subject to the provisions of Section 4.06 and any other nondiscretionary restrictions or limitations regarding distributions imposed on the Company by the Act or under any loan agreements, other financing documents, or other contracts or agreements to which the Company or its property may be subject, the Management may cause the Company to distribute Distributable Cash or other property to the holders of Units at such times and in such aggregate amounts as the Management may determine in its sole discretion. Except for distributions in connection with the dissolution and liquidation of the Company (to which the provisions of Section 9.03 will apply), all such distributions will be made as set forth below in this Section 4.02.

(a) Distributions from Operations. Distributable amounts arising from transactions *other than* Capital Events will, after reducing the Distributable Cash or other property for any required Tax Distributions to be made pursuant to Section 4.02(c), be made in the following order and priority:

(i) First, to the holders of Class I Units in proportion to their respective Capital Contributions with respect to such Class I Units, until such time as the aggregate distributions to each Class I Unit made pursuant to this Section 4.02(a)(i) and Section 4.02(b)(i) equal each such Class I Unit's aggregate accrued Preferred Return as of and through the effective date of such distribution; provided, however, that no Class I Unit may receive aggregate distributions pursuant to this Section 4.02(a)(i) and Section 4.02(b)(i) in excess of such Class I Unit's aggregate accrued Preferred Return as of and through the effective date of such distribution;

(ii) Next, in the ratios of (A) thirty percent (30%) to the holders of Class S Units (and among them in proportion to their respective numbers of Class S Units); and (B) seventy percent (70%) to the holders of Class I Units, and among them in proportion to and in an amount equal to their respective Class I Units' excess, if any, of (I) the aggregate accrued Secondary Return with respect to such Units as of and through the date of such distribution, over (II) the aggregate amount of prior distributions made with respect to such Units pursuant to this clause (B) of this Section 4.02(a)(ii) or clause (B) of Section 4.02(b)(iii) below – all until such time as the aggregate distributions pursuant to clause (B) of this Section 4.02(a)(ii) or clause (B) of Section 4.02(b)(iii) to each holder of Class I Units equal, but do not exceed, the aggregate Secondary Return with respect to such Units; and

(iii) Finally, any remaining amounts to and among the holders of Class I Units and Class S Units in accordance with their respective Ultimate Percentages with respect to their Units of each Class.

(b) Distributions from Capital Events. Distributable amounts arising from Capital Events will, after reducing the Distributable Cash or other property for any required Tax Distributions to be made pursuant to Section 4.02(c), be made in the following order and priority:

(i) First, to the holders of Class I Units in proportion to their respective Capital Contributions with respect to such Class I Units, until such time as the aggregate distributions to each Class I Unit made pursuant to this Section 4.02(b)(i) and Section 4.02(a)(i) equal each such Class I Unit's aggregate accrued Preferred Return as of and through the effective date of such distribution; provided, however, that no Class I Unit may receive aggregate distributions pursuant to this Section 4.02(b)(i) and Section 4.02(a)(i) in excess of such Class I Unit's aggregate accrued Preferred Return as of and through the effective date of such distribution;

(ii) Next, to the holders of all Units in proportion to and to the extent of their Units' respective amounts of Unreturned Capital Contributions until the Unreturned Capital Contributions of each such holder of Units has been reduced to zero;

(iii) Next, in the ratios of (A) thirty percent (30%) to the holders of Class S Units (and among them in proportion to their respective numbers of Class S Units); and (B) seventy percent (70%) to the holders of Class I Units, and among them in proportion to and in an amount equal to their respective Units' excess, if any, of (I) the aggregate accrued Secondary Return with respect to such Units as of and through the date of such distribution, over (II) the aggregate amount of prior distributions made with respect to such Units pursuant to this clause (B) of this Section 4.02(b)(iii) or clause (B) of Section 4.02(a)(ii) above – all until such time as the aggregate distributions pursuant to clause (B) of this Section 4.02(b)(iii) or clause (B) of Section 4.02(a)(ii) to each holder of Class I Units equal, but do not exceed, the aggregate Secondary Return with respect to such Units; and

(iv) Finally, any remaining amounts to and among the holders of Class I Units and Class S Units in accordance with their respective Ultimate Percentages with respect to their Units of each Class.

(c) Tax Distributions.

(i) If the total distributions of cash and/or other property (based on the fair market value of such other property) that otherwise would be distributable to any Member with respect to a year (either during such year or within ninety (90) days thereafter and identified as being with respect to the immediately preceding year) under this Agreement, but without regard to this Section 4.02(c), are less than an amount equal to the aggregate state and federal income tax liability such Member would have incurred as a result of such Member's allocable share of the taxable income of the Company, then the Management may, in its sole discretion, cause the Company to make, by ninety (90) days after the end of such year, distributions in available cash under this Section 4.02(c) (such distributions being referred to as the "Tax Distributions") to all such Members in the amount of, and in proportion to, their amounts of such underage. For purposes of this Section 4.02(c), each Member's aggregate income tax liability shall be calculated: (i) as if such Member were (A) a natural human being resident in the State of North Carolina, (B) taxable at the maximum combined effective rate with respect to the allocated Company taxable income under applicable federal tax law and state income tax law of North Carolina and any other applicable state in which the Company's income is subject to taxation (as determined the Management in its reasonable judgment after consulting with tax advisors to the Company), taking into account the character of the items of income; and (ii) as if allocations from the Company were, for such year, the sole source of income and loss for such Member. If the total distributions that otherwise would be distributed with respect to a year to each Member under this Agreement, without regard to this Section 4.02(c), are sufficient to satisfy the minimum amounts of distributions required to be paid to each Member under this Section 4.02(c), then no Tax Distributions will be paid for such year, and distributions for such year will be payable pursuant to the other provisions of this Agreement. Furthermore, no Tax Distributions are to be paid in connection with the dissolution and liquidation of the Company.

(ii) Tax Distributions may be made during a year to enable the Members to satisfy estimated tax liabilities with respect to income and gains realized by the Company (and not otherwise covered by distributions) during such year, and such Tax Distributions shall be treated during such year as advances (and not distributions). If such advances or portions thereof are required to be returned at the end of a year (after review of such Member's share of the Company's taxable income for which Tax Distributions are distributable), such portions shall be returned promptly to the Company without interest. Any portion of such advance not required to be returned at the end of the year shall be deemed a Tax Distribution at that time. Any tax "withholding" or similar payments made by the Company pursuant to Section 4.05 on behalf of a Member with respect to a Member's share of Company income or distributions with respect to a year shall be treated by the Company as distributions creditable against the Tax Distributions requirement for such year under this Section 4.02(c), if the Member does not reimburse the Company for such "withholding" or similar payments.

(iii) All Tax Distributions made by the Company to or on behalf of a Member shall, for purposes of determining future distributions to be made to such Member under Sections 4.02(a) or 4.02(b), be treated as a prepayment of distributions otherwise to have been made to such Member under Sections 4.02(a) or 4.02(b), by reducing the amount of the next succeeding distribution or distributions otherwise distributable to such Member under Sections 4.02(a) or 4.02(b) by the amount of Tax Distributions for which no prior reduction under Section 4.02(a) or Section 4.02(b) has been made.

(d) Right of Setoff. The Management will have the right to cause the Company to apply all or any portion of any amount of a distribution otherwise distributable to a holder of Units against any advances or other sums then due and owing to the Company from or on behalf of such holder of Units, including, without limitation, advances under Section 4.05 that are not repaid. The portion of any such distribution so applied as a set-off against amounts due and owing will, even though not physically distributed to the holder of Units, be treated as a distribution with respect to the holder's Units for purposes of this Agreement, including, but not limited to, the determination of the holder's Capital Account balance and the amount of future allocations and distributions to which the holder Member is entitled. In addition, to the extent the amount applied is being set off for payment of an unpaid Capital Contribution, the amount will be treated as a Capital Contribution by the holder as of the date of the distribution so applied.

(e) Use of Electronic Funds. Each Member acknowledges and agrees that all distributions to Members, whether under this Article IV or Article IX, shall be made or effected via automated clearing house (ACH) transfer, unless otherwise determined by the Management in its sole discretion. Each Member agrees to provide the Company with ACH information and to promptly update such ACH information in the event of any change therein. If, upon a Member's request, the Management agrees in its sole discretion to make a distribution to the Member via check, such Member shall pay the Company a \$25 service fee per check (which fee shall be subject to the right of setoff described in Section 4.02(d)).

(f) Class S Unit Distributions. The Management may elect to (i) make any distributions pursuant to this Section 4.02 in respect of the Class S Units (the "Class S Distributions") in kind, rather than in cash, whether or not the Class I Members also receive in kind distributions, or (ii) redeem all or a portion of the Interests of the Class S Members in exchange for one or more Investment Properties (or other Company assets) equal to the value of the Interests redeemed, as determined in the good faith discretion of the Management. For purposes of the foregoing, the Management will determine the fair market value of any Company assets distributed in kind or used to redeem the Interests of the Class S Members in its reasonable discretion based on either (A) a Broker's Opinion of Value or an appraisal of the applicable assets conducted by an MAI-certified appraiser, with such broker or MAI-certified appraiser selected in good faith by the Management, or (B) the value assigned to such assets by a bona fide third-party purchaser of such assets. Additionally, the Class S Unitholders may receive the Class S Distributions from the Operating Partnership or other subsidiary of the Company or its Affiliates (any such distributions to the Class S Unitholders, "Lower Tier Distributions"). Any Lower Tier Distributions made to the Class S Unitholders will be applied for purposes of Section 4.02 as if such Lower Tier Distributions had instead been distributed by the Company pursuant

to Section 4.02, and the Company will make corresponding adjustments (as determined by the Management in good faith after consultation with its professional tax or accounting advisors) to the allocations pursuant to Exhibit B. For the avoidance of doubt, the Class S Unitholders may not receive a greater amount of distributions (whether from the Company, the Operating Partnership, or other subsidiary of the Company or its Affiliates) than the Class S Unitholders would have received if no Lower Tier Distributions had been made and all Class S Distributions were instead made by the Company.

4.03 Allocations for Tax Purposes; Effect of Change of Units. Except as otherwise provided herein, each item of income, gain, loss, or expense of the Company shall be allocated to the Members in the same manner as allocations are made of Net Income, Net Loss, and other items of income, gain, loss, or expense pursuant to Exhibit B. If (i) there is a transfer of, or issuance of any additional, Units in the Company other than as of the end of a calendar year, and (ii) after such transfer or additional issuance the Company is treated as a partnership for federal income tax purposes, then all items to be allocated, credited, charged or distributed for such year shall be prorated in accordance with section 706 of the Code, using any convention permitted by law and selected by the Company Tax Rep; provided, however, that if the Company utilizes the cash method of accounting, certain “allowable cash basis items” as defined in Code section 706(d)(2) shall be allocated as therein specified. Selection of the specific allowable method shall be made by the Company Tax Rep, unless a transferor Member and a transferee themselves specify, with respect to the transferred Units, a method that is permitted under the Code. A Company Tax Rep or Manager shall have no liability to any Member in connection with the determination of each Member’s share of prorated allocations of income or losses if such allocations were made in good faith in accordance with the terms of this Agreement or in reliance on the advice of the Company’s accountants or tax counsel.

4.04 Partnership Tax Items and Modifications to Allocations. At all times during which the Company is treated as a partnership for federal income tax purposes, the following provisions shall apply.

(a) Tax Elections. The Company Tax Rep, in its sole discretion, may cause the Company to elect pursuant to section 754 of the Code and the Regulations to adjust the basis of the Company assets as provided by sections 743 or 734 of the Code and the Regulations thereunder. The Company shall make such other elections for federal income tax purposes as may be determined by the Company Tax Rep, acting in its sole and absolute discretion.

(b) Amendments for Tax Issues. The Company Tax Rep shall prepare and execute any amendments to this Agreement, which amendments need not be approved by the Members as otherwise required under Section 10.01 to become effective, as are necessary for the Company to comply with the provisions of Regulations sections 1.704-1(b), 1.704-1(c), and 1.704-3 upon the happening of: (i) a liquidation of the Company within the meaning of Regulations section 1.704-1(b)(2)(ii)(g); (ii) the contribution or distribution of any property, other than a *de minimis* amount, to or by the Company in exchange for Units or another form of Interest in the Company; or (iii) the issuance of Units or another form of Interest (other than a *de minimis* Interest) as consideration for the provision of services to or for the benefit of the Company by an existing Member acting in a Member capacity or by a new Member acting in a

Member capacity or in anticipation of becoming a Member; provided, however, that adjustments pursuant to clauses (ii) or (iii) are to be made only if the Company Tax Rep, after consultation with the Company's professional tax or accounting advisors, reasonably determines that such adjustments are necessary or appropriate to reflect the relative economic interests of the Members. Under any other circumstance, the Company Tax Rep shall prepare and execute any amendments to this Agreement, which amendments need not be approved by the Members as otherwise required under Section 10.01, as are necessary for the Company to comply with the provisions of Regulations sections 1.704-1(b), 1.704-1(c) and 1.704-3, but only if the Company Tax Rep determines that such amendment (I) is required or prudent to comply with the Regulations and (II) is not likely to have a material effect on the amounts distributable to any Member of the Company.

(c) Tax Audit Provisions.

(i) For each taxable year of the Company, a "Company Tax Rep" will be selected to serve for the Company, which must be a Member, Manager, or other Person permitted to serve as the Company's "partnership representative" under Code section 6223(a) and any Regulations or other administrative guidance promulgated thereunder. The Company Tax Rep will be selected, and may be changed from time to time, by a Majority in Interest of the Class S Members, to any other Person permitted to serve in such role under the Code, Regulations, or other applicable authority. With respect to any period in which any non-individual is the Company Tax Rep, the Company Tax Rep shall cause the Company to appoint an individual eligible to be a "designated individual" under the BBA Audit Provisions (the "Designated Individual") through whom the Company Tax Rep will act for all purposes of the BBA Audit Provisions. All references to the Company Tax Rep in this Agreement will be deemed to also be references to the Designated Individual acting on behalf of the Company Tax Rep or the Company in that person's capacity as the Designated Individual. Sponsor Member is hereby identified as the Company Tax Rep as of the date of this Agreement.

(ii) The Company Tax Rep is authorized and required to represent the Company in connection with all examinations of the Company's affairs by tax authorities, including resulting administrative and judicial proceedings, and to expend Company funds for professional services and costs associated therewith. Each current and former Member and other holder of Units agrees to, and shall, (A) cooperate with the Company Tax Rep in the determination of the liability of the Company and each Member or other holder of Units pursuant to this Section 4.04(c), including providing such information and documentation as is reasonably requested by the Company Tax Rep in connection with any audit proceedings concerning the Company, and (B) do or refrain from doing any or all things reasonably required by the Company Tax Rep to conduct such proceedings. Any direct, out-of-pocket expense incurred by the Company Tax Rep in carrying out his, her, or its obligations hereunder shall be allocated to and charged to the Company as an expense of the Company for which the Company Tax Rep will be reimbursed.

(iii) In connection with any of the actions set forth in this Section 4.04(c), the Company Tax Rep, after consulting with the Company's tax or accounting advisors, has the authority to determine the proper tax and accounting treatment of such action in its

reasonable discretion and in reliance upon the applicable Code and Regulations promulgated thereunder.

(iv) If the Company incurs any liability for taxes, interest, or penalties by reason of an Internal Revenue Service audit under the BBA Audit Provisions or a similar liability by reason of an audit by a state, local, or other government tax authority (the “LLC Tax Cost”), then upon the consent of a Majority in Interest of the Class S Members, the Company Tax Rep may require the Members and any or other holders of Units (including any former Member or holder of Units) to whom such liability relates, as reasonably apportioned and determined in good faith by the Company Tax Rep based on consultation and advice from the Company’s professional tax advisors, to pay, and each such Member or other holder of Units (including any former Member or holder of Units) hereby agrees to pay, such amount to the Company of the LLC Tax Cost as is attributable to the Interest of the current or former Member (or other holder of Units) for the taxable period in issue. Any such amount shall not be treated as a Capital Contribution or increase any Unreturned Capital Contribution amount for purposes of any provision herein that affects distributions to the Members, and shall not be treated as a Capital Contribution in any respect except for the limited purpose of crediting the holder’s Capital Account therefor if and as may be required by the Regulations or other applicable federal tax authority. Any such amount not paid by a current or former Member or other holder of Units at the time reasonably requested by the Company Tax Rep shall accrue interest at the rate set by the Company Tax Rep (not to exceed the maximum rate permitted by law), compounded monthly, until paid, and such current or former Member (or other holder of Units) shall also be liable to the Company for any damages resulting from a delay in making such payment beyond the date such payment is reasonably requested by the Company Tax Rep, and for this purpose the fact that the Company could have paid this amount with other funds shall not be taken into account in determining such damages. Without reduction in the obligation of a current or former Member or other holder of Units under this Section 4.04(c), any amount paid by the Company that is attributable to a current or former Member or other holder of Units, as determined by the Company Tax Rep in its reasonable discretion, and that is not paid by such a current or former Member or other holder of Units as provided above in this paragraph, may be treated as a distribution, or other payment of any amount payable or to be paid, by the Company to such a current or former Member or other holder of Units.

(v) The obligations of each current and former Member or other holder of Units under this Section 4.04(c) shall survive any transfer or assignment by such Member or other holder of its Interest and the dissolution of the Company.

4.05 Tax Withholding. The Company Tax Rep shall be, and hereby is, authorized to cause the Company to pay, on behalf of or with respect to any Member or any transferee of Units that is not a Member, any amounts to a federal, foreign, state or local taxing authority as may be necessary for the Company to comply with tax withholding provisions of the Code, the Delaware Code, or other income tax or revenue laws of any applicable taxing authority, whether because the Member or transferee is considered a nonresident for Delaware income tax purposes or not to be a “United States person” for federal income tax purposes or for any other reason. Any such amount paid by the Company shall be treated as a distribution by the Company to such Member or transferee, and shall be offset against any distributions otherwise due to the Member or

transferee. In addition, if the amount of any such tax withholding or payment exceeds the amount of unpaid distributions otherwise owing to such Member or transferee with respect to the year or other period for which such tax payment was made, the Company shall, in the sole discretion of the Company Tax Rep, either (i) treat such excess amount as an offset against any future distributions to be made to such Member or transferee, or (ii) require the Member or transferee on whose behalf such payments were made to reimburse the Company for such excess amount.

4.06 Limitation on Distribution. Notwithstanding Section 4.02 hereof, no distribution shall be declared and paid if payment of such distribution would cause the Company to violate any limitation on distributions provided in the Act, in any other applicable law, or pursuant to any contractual obligations of the Company with lenders or other Persons.

4.07 Books of Account; Member Inspection Rights. The Management shall maintain, or otherwise cause the Company to maintain, books, records and accounts of all operations and expenditures of the Company, and shall determine all items of income, expense, Net Income, and Net Loss in accordance with the method of accounting selected by the Management, consistently applied. All of the records and books of account of the Company, in whatever form maintained, shall at all times be maintained at the principal office of the Company or another location designated by the Management and shall be open to the inspection and examination of the Members or their representatives during reasonable business hours. Such right of inspection and examination may be exercised through any agent or employee of a Member designated by it or by an attorney or independent certified public accountant designated by such Member. Such Member shall bear all expenses incurred in any examination made on behalf of such Member.

4.08 Reporting Requirements.

(a) Annual Reports. Within one hundred twenty (120) days after the end of each Fiscal Year or as soon thereafter as is reasonably practicable, the Management shall cause to be prepared annual financial statements of the Company, and shall provide a copy of such statements to each Member. Except as otherwise approved by a Majority in Interest of the Class S Members for any particular year, the annual financial statements will be audited. In addition to the annual financial statements, such other reports sent to each Member may include information as to the activity in such Member's Capital Account for the year but need not contain any separate information as to the activity in any other Member's Capital Account.

(b) Quarterly Reports. Within seventy-five (75) days after the end of each fiscal quarter, the Management shall cause to be prepared and transmitted to each Member a status report on the activities of the Company, including information regarding sales of Investments Properties made by the Company, expenses incurred by the Company and statements of the Preferred Return and Secondary Return of such Member, the Unreturned Capital Contributions of such Member and distributions made to the Members.

(c) Tax Return Information. As soon as reasonably practicable after the end of each Fiscal Year of the Company, the Management shall cause to be prepared and furnished to each Person recognized under this Agreement as a holder of Class I Units or Class S Units

during such year an annual statement (including a copy of Schedule K-1 to Internal Revenue Service Form 1065) indicating such holder's share of the Company's income, loss, gain, expense, and any other items in reasonably sufficient detail to enable the holder to prepare its federal income tax return and other applicable tax filings for such period. The Management shall use commercially reasonable efforts to issue such annual statement (including a copy of Schedule K-1 to Internal Revenue Service Form 1065) no later than 90 days after the end of each Fiscal Year of the Company.

(d) Investment Property Valuations. Unless otherwise determined by the Management, within one hundred twenty (120) days after the end of each Fiscal Year which ends after the Capital Raise End Date, or as soon thereafter as is reasonably practicable, the Management shall cause to be prepared and furnished to each Member a valuation of all Investment Properties owned for at least one year as of the end of such Fiscal Year, with such valuation based on a Broker's Opinion of Value of the Company's assets or an appraisal of the Company's assets conducted by an MAI-certified appraiser, with such broker or MAI-certified appraiser selected by the Management in good faith. For the avoidance of doubt, in no event will any valuation of the Investment Properties be prepared or furnished with respect to a Fiscal Year ending prior to the Capital Raise End Date.

(e) ERISA Reports. To the extent required by ERISA, the Management shall prepare and file, or cause the accountants of the Company to prepare and file, an information report in compliance with Department of Labor regulations section 2520.103-12.

ARTICLE V MANAGEMENT

5.01 Management.

(a) The business and affairs of the Company shall be managed by its Management, and not by the Members in their roles as members. In addition to the powers and authorities expressly conferred by this Agreement upon the Management, the Management has full and complete authority, power, and discretion to manage and control the business of the Company, to make all decisions regarding those matters, and to perform any and all other acts or activities customary to or incident to the management of the Company's business, except only as to those acts and things as to which approval by the Members is expressly required by the Certificate of Formation, this Agreement, the Act, or other applicable law. At any time when there is more than one Manager, the act of the Management shall be determined upon the affirmative vote of a majority of the Managers, unless the approval of a greater number of the Managers is otherwise required pursuant to this Agreement or the Act.

(b) Notwithstanding the authority, power and discretion granted to the Management under Section 5.01(a) above to manage and control the business of the Company, the consent of a Majority in Interest of the Class S Members must be obtained for the following actions:

(i) except as otherwise specifically provided elsewhere herein, to amend this Agreement (in accordance with Section 10.01 below) or the Certificate of Formation;

(ii) to merge, consolidate or convert the Company with or into another Entity; provided, however, that approval shall also be required of such a transaction from each other Member, if any, that will have personal liability for obligations of the surviving Entity after the merger, consolidation, or conversion that is greater than the liability to which the Member was subject prior to such merger, consolidation, or conversion (this clause (ii) is specifically intended to override the default voting requirements set forth in Article 9 of the Act for the Members' approval of a merger, consolidation, or conversion of the Company with or into another Entity);

(iii) to approve the acquisition or sale or other disposition of any Investment Property or other parcel of real property by the Company or any Subsidiary or other Affiliate Entity of the Company;

(iv) to cause or approve the Company or any Subsidiary or other Affiliate thereof owning an Investment Property to (A) register for an initial public offering or listing of securities; (B) convert into, or elect status as, an entity taxable for federal income tax purposes as a corporation or a real estate investment trust (as defined in Code section 856(a)); or (C) exchange or transfer any Investment Property, or equity interests of any Subsidiary or Affiliate of the Company owning an Investment Property, for any equity interests of another Entity that will not be Controlled, directly or indirectly, by the Company immediately after such exchange or transfer;

(v) to cause or permit the Company or any Subsidiary or other Affiliate Entity of the Company to borrow funds, incur any indebtedness or increase the amount of any indebtedness, except that no such consent will be required to borrow funds or incur indebtedness (A) in connection with the acquisition of any Investment Property or other parcel of real property, (B) to refinance or replace any indebtedness having a principal amount not in excess of the principal amount of the indebtedness being refinanced or replaced, or (C) in connection with the payment or funding of any operational costs of the Company (including the Company Expenses) in an amount not to exceed \$10,000 in any one instance other than for amounts of costs included in an operating budget otherwise approved by a Majority in Interest of the Class S Members;

(vi) to cause or authorize the Company to grant or give, or cause or permit any Subsidiary to grant or give, any guarantee or indemnity to secure the liabilities or obligations of any Person;

(vii) to extend the term of Company pursuant to Section 2.07(b) of this Agreement;

(viii) to approve the annual operating budget for the Company or any Subsidiary or any modification, amendment, alteration or other change to such budget other than a *de minimis* change;

(ix) to admit any new Person or Persons as a Member of the Company (except as otherwise contemplated by Article III or Article VIII hereof); and

(x) to approve any voluntary dissolution of the Company, pursuant to Section 9.01(b).

(c) Notwithstanding the authority, power and discretion granted to the Management under Section 5.01(a) above to manage and control the business of the Company, the consent of a Majority in Interest of the Members (other than the Class S Members) must be obtained for the following actions:

(i) to take any action that differs materially from the business plan provided to the Class I Members with the PPM;

(ii) to make any modifications or amendments to this Agreement that materially and adversely impact the rights granted to the Class I Members (including economic rights) relative to the rights of all Members; and

(iii) to admit any new Person or Persons as a Member of the Company or issue additional Units to any Person (in each case except as otherwise contemplated by Article III or Article VIII hereof).

(d) Any instrument regarding a matter approved by the Management and/or Members, as appropriate, in accordance with Section 2.06 or this Section 5.01 may be executed and delivered on behalf of the Company by any Manager, including any deed, deed of trust, note or other evidence of indebtedness, lease agreement, security agreement, financing statement, contract of sale, or other instrument purporting to convey or encumber, in whole or in part, any or all of the assets of the Company, at any time held in its name, or any receipt or compromise or settlement agreement with respect to the accounts receivable and claims of the Company; no other signature shall be required for any such instrument to be valid, binding, and enforceable against the Company in accordance with its terms. All Persons may rely thereon and shall be exonerated from any and all liability if they deal with a Manager on the basis of documents approved and executed on behalf of the Company by a Manager. Any Person dealing with the Company, its Manager(s), or its Members may rely upon a certificate signed by a Manager as to: (i) the identity of the Members or Managers; (ii) acts by the Members or Management; (iii) any act or failure to act by the Company; or (iv) any other matter whatsoever involving the Company or any Member.

(e) The Management may, but is not required to, contract with or delegate to one or more other Persons (which may but need not be a Member or Manager, or an Affiliate thereof), with such titles or positions as the Management may determine, any powers or authority granted to the Management pursuant to this Agreement or pursuant to the Act to decide or perform any of the Management's Management, oversight or operational activities or functions; provided, however, that the delegation of authority by the Management pursuant to this paragraph shall not relieve the Management from the duties and responsibilities set forth in the Act or in this Agreement.

(f) Any action taken by the Management may be evidenced by a written consent, signed and executed by the number of Managers whose affirmative vote is required for such action by the Company to be effective under Section 5.01(a). A Manager's consent hereunder may be in electronic form and may be delivered by electronic mail or other electronic means. Any reasonable manifestation of a Manager's assent shall be considered such Manager's "signature" for this purpose.

(g) Subject to any limitations expressly set forth in this Agreement, the Management may, but is not required to, cause the Company to contract with any member(s) of the Sponsor Group or any Affiliate of such member(s) for the provision of property or services; provided, however, that any payments made by the Company pursuant to any such contract shall not exceed the prevailing market rates for comparable properties or offered by third parties of similar experience and quality, as applicable, and as determined in the reasonable discretion of the Management.

(h) Notwithstanding any provision to the contrary in this Agreement, the provisions and terms in this Agreement with respect to the management and governance of the Company may be revised, in the sole discretion of and upon the written consent of a Majority in Interest of the Class S Members, so as to assign or delegate any to all of the rights and duties of the Management and/or the Class S Members under this Agreement regarding decision-making and governance for the Company to a board of representatives or directors or similar body of or on behalf of the Company. Such revisions may be reflected in an amendment to this Agreement, resolution or consent of the Class S Members, or other documentation as may be determined and approved by a Majority in Interest of the Class S Members, which will not require the consent or approval of any other Members or Person other than a Majority in Interest of the Class S Members.

5.02 Number and Selection. As of the Effective Date, the Company has one (1) Manager; provided, however, that the Class S Members, upon the determination of a Majority in Interest of the Class S Members, may from time to time increase or decrease the number of Managers, but the total number of Managers shall never be reduced below one. As of the Effective Date, the sole Manager of the Company is 10F Manager. A Manager shall serve as Manager until his, her, or its death (if a human being), dissolution and liquidation (if an Entity), resignation, or removal as provided herein or in the Act. A Manager may, but need not be, a resident of the State of Delaware or a Member of the Company. Upon a Manager's death, dissolution and liquidation, resignation or removal, a successor Manager shall be elected upon the determination of a Majority in Interest of the Class S Members, and the successor Manager shall thereupon proceed to serve as the Manager. The name, address, and consent of each initial Manager and any additional or successor Manager to serve in such capacity shall be evidenced in the form of Exhibit A attached hereto and made a part hereof.

5.03 Removal. The Class S Members shall be responsible for the oversight and supervision of the Management on behalf of the Company. Any Person holding the position of Manager may be removed from such position (i) with or without cause upon the determination of a Majority in Interest of the Class S Members or (ii) with cause upon the determination of a Majority in Interest of the Class I Members. A Manager removed under this Section 5.03 shall

thus cease to serve as Manager, and another Person elected as Manager shall proceed to serve as Manager in the place of the removed or replaced Manager as provided in Section 5.02. Any such removal shall be effective as determined by the Class S Members or Class I Members agreeing to remove the Manager. For purposes of this Section 5.03, “*cause*” means an adjudication, by a court of competent jurisdiction, that a Manager or, in the case of a Manager that is an Entity, the Person in Control of such Manager: (i) has been guilty of fraud or willful misconduct with respect to Company business; or (ii) has committed a felony involving moral turpitude that materially and adversely affects the business or reputation of the Company.

5.04 Resignation. Any Manager of the Company may resign at any time by giving written notice to each Member. The resignation of any Manager shall take effect upon receipt of notice thereof or at such later time as shall be specified in such notice; unless otherwise specified therein, the acceptance of such resignation shall not be necessary to make it effective. The resignation of a Manager who is also a Member shall not affect the resigning Manager’s rights as a Member under this Agreement.

5.05 Procedure upon Change of Manager. Upon any change in the identity of any Manager of the Company, the remaining or successor Manager(s) shall promptly, and within such period or periods as may be required under applicable law, (i) notify each Member; (ii) obtain all necessary signatures; (iii) amend Exhibit A attached hereto to confirm any new Manager’s agreement to serve in such position, which amendment may be made by the Management without obtaining the consent or approval of Members as otherwise required under Sections 5.01(b) or 5.01(c), as long as the selection of such new Manager has been approved as provided under this Agreement; and (iv) as necessary, file an amendment to the Company’s annual report with the Secretary of State and any other documents as may be appropriate to reflect any former Manager’s ceasing to be a Manager or other principal company official of the Company, any new Manager’s becoming a Manager or other principal company official of the Company, and any other information that may be required in connection with such change in Managers.

5.06 Inspection of Books and Records. Any Manager has the right to examine all books and records of the Company for a purpose reasonably related to such Person’s position as a Manager.

5.07 Expenses.

(a) The Company shall be responsible for the expenses of its organization and offering of Interests, including government charges and professional fees and expenses incurred in connection with the preparation of this Agreement, other contract documents and the private placement document to be furnished by the Management to prospective investors in the Company, legal and accounting fees, printing costs, travel and out-of-pocket expenses related to the organization and offering of Interests.

(b) The Company shall be responsible for all out-of-pocket Company Expenses incurred by it or by the Management on its behalf (including, for the avoidance of doubt, any Company Expenses payable to any member(s) of the Sponsor Group or any Affiliate

of such member(s) pursuant to a contract described in Section 5.01(g)). As used herein, “Company Expenses” mean:

(i) all fees, costs, and expenses necessary to register or qualify the Company under any applicable United States federal, state or foreign laws, to list or register the Company’s securities for any public offering or listing of securities, to file for any exemptions from registration of the Company’s securities under any federal, state or foreign laws, to maintain such registrations or qualifications, or to obtain or maintain exemptions under such laws;

(ii) all expenses, charges or fees incurred or payable in connection with the identification, evaluation, acquisition, ownership, sale or proposed sale of Investment Properties or other real property, whether or not consummated, including formation and operation of any Affiliate Entities through which Investment Properties are directly or indirectly held (including a real estate investment trust), introductory investment or placement services, brokerage fees, real property maintenance fees (including those described in clause (iii) below), due diligence expenses, all taxes or governmental charges, bank charges, transfer fees, registration fees, interest, commitment fees, custody fees, leasing and servicing fees, advisory fees, property management fees, and lawyers’, accountants’, agents’, engineers’, appraisers’, consultants’, experts’, and other professional fees and costs;

(iii) all expenses that are directly attributable to the operation of the Investment Properties, including, without limitation: (A) operating expenses; (B) salary and wages of Persons working directly with Investment Properties, including maintenance personnel management compensation (i.e., managers of the physical location(s)); (C) costs of correcting violations; (D) service agreements; (E) collecting delinquent rents; (F) call center costs; (G) capital expenditures; (H) printed checks; (I) utilities; (J) advertising, including press releases; (K) printed forms and supplies; (L) bank and credit card fees; (M) hiring, relocation, and termination costs of employees; (N) debt service; (O) insurance (including insurance coverage provided by any member of the Sponsor Group or any Affiliate of such member); (P) general accounting and reporting services; (Q) office supplies; (R) cost of electronic data processing equipment; (S) travel, including travel expenses incurred by maintenance personnel, personnel of any Affiliate of a member of the Sponsor Group, or in connection with the identification and review of potential Investment Properties, irrespective of whether the Company acquires such potential Investment Properties, and including commercial and/or general aviation or other forms of transportation (including vehicles or aircrafts owned by any member of the Sponsor Group or any Affiliate of any such member of the Sponsor Group, billed at or below the prevailing market rate charged to third parties for similar modes of travel); (T) license fees, dues and subscriptions; (U) office supplies and general office expenses; (V) landscaping; (W) repairs (including labor costs); (X) maintenance (including labor costs); (Y) turnover expenses; (Z) extermination; (AA) capital expenditures and improvements, including office build-outs, camera installations, and other technology installations and implementations; (BB) administrative costs; (CC) property management software; (DD) accounting software; (EE) mileage reimbursement; (FF) turnover costs; (GG) overlocking rental units; (HH) cleaning and trash costs; (II) hauling and dumping; (JJ) evictions; (KK) technology and software, including technologies and software provided by any member of the Sponsor Group or any Affiliate of a member of the Sponsor Group or the Company; (LL) the costs of any Expansion (including labor costs and

other costs related to General Conditions); (MM) inventory for Investment Properties (e.g., kiosks, security cameras, etc.), including the sale of such inventory by any member of the Sponsor Group or any Affiliate of such member to the Company, its Subsidiaries, or their Affiliates at prevailing market rates charged to third parties for similar inventory; (NN) Onsite Payroll for Property Operation Technicians; and (OO) any other miscellaneous direct costs of the operation of the property performed by personnel of the Management, or an Affiliate thereof, other than Management Expenses as defined in Section 5.07(d);

(iv) all expenses incurred by the Company related to the identification and admission of any Class I Member or Class S Member or acceptance of any subscriptions therefrom, including but not limited to any brokerage fee, placement fee, finder's fee or similar fee or charge;

(v) all fees paid to any placement agent or entity providing investment management or investor relations services (including but not limited to Juniper Square or any of its Affiliates) with respect to the Class I Units, including but not limited to fees for technology services;

(vi) all expenses incurred in the collection of amounts due to the Company from any Person;

(vii) all accounting and other costs of preparing and maintaining records and books of account in relation to the business of the Company;

(viii) the remuneration and expenses of the Company's independent accountants and appraisers, and all other costs incurred in connection with the preparation of the financial statements, audits, appraisals, valuations, tax returns and other statements and reports referred to in Section 4.08;

(ix) all costs and expenses of, or incidental to, the preparation of amendments to this Agreement as set forth herein;

(x) all costs and expenses of, or incidental to, the preparation and dispatch to Members of all checks or distributions, reports, circulars, forms and notices, and any other documents that, in the opinion of the Management, are necessary or desirable in connection with the business and administration of the Company, including (A) costs and expenses associated with holding meetings of the Members from time to time, if any, (B) third-party fees associated with money transfers, whether by wire, ACH or other electronic funds transfer methods, and (C) any costs of investor-relations personnel;

(xi) all costs and expenses incurred as a result of dissolution, winding up and termination of the Company and the distribution of and/or realization of proceeds from Investment Properties and other Company assets pursuant thereto;

(xii) any costs and expenses of any litigation involving the Company and the amount of any judgment or settlement paid in connection therewith;

(xiii) all costs and expenses for indemnity or contribution payable by the Company to any Person, whether payable under Article VII hereof or otherwise and whether payable in connection with any litigation involving the Company or otherwise;

(xiv) all Management Fees payable pursuant to Section 5.08 or Section 5.09;

(xv) any withholding or other taxes, together with any interest and penalties, to the extent such amounts are paid by the Company, or the Management on behalf of the Company or any holder of Units, and are not reimbursed by or collected from any holder of Units;

(xvi) all expenses associated with the organization, funding and creation of 10F Manager and Sponsor Member and any Subsidiary or Affiliate Entity through which Investment Properties are directly or indirectly held (including, without limitation, the 10FSSAC5 REIT, the Operating Partnership, 10FSSAC5 Master, and 10FSSAC5 TRS);

(xvii) all costs and expenses associated with hiring a director of investor relations or similar position;

(xviii) all costs and expenses related to performing due diligence with respect to potential investors in the Company or potential Capital Contributions to the Company, including but not limited to (A) expenses for “know your client” (KYC) and “anti-money laundering” (AML) services and any other similar professional services and (B) insurance premiums or other insurance expenses related to such due diligence or professional services;

(xix) costs and expenses of any data or market data programs or other software, including, without limitation, data and market data programs and software provided by each of Moody’s Analytics, Inc., Altus Group Limited, Social Explorer, Inc., Union Realtime LLC, Storable, and their Affiliates;

(xx) costs and expenses of any key person life insurance policies maintained by the Company (and with respect to which the Company is the beneficiary) on the life of any member of the Sponsor Group or any officer, employee, or other service provider of the Company, the Manager, or any of their Affiliates;

(xxi) costs and expenses related to the qualification and maintenance of the 10FSSAC5 REIT as a REIT for U.S. federal income tax purposes; and

(xxii) any other reasonable costs and expenses in connection with the administration of the Company or otherwise that may be authorized by this Agreement.

(c) At any time, the Management or any Affiliate of a Manager may advance or pay any Company Expenses on behalf of the Company, and in connection with such payments a Manager and/or its Affiliates, as applicable, shall be promptly reimbursed by the Company.

(d) Except as otherwise set forth in Section 5.07(b), the compensation of the employees and all other overhead expenses of any Manager relating to the performance of its duties as the Manager, on behalf of the Company, shall be borne by the Manager (the “Management Expenses”). The Company shall not be responsible for the payment or reimbursement of the Management Expenses, and such expenses shall be borne by the Manager in exchange for the receipt of the Management Fees set forth in Section 5.08. Notwithstanding anything in this Section 5.07(d) to the contrary, any payment to an Affiliate of a Manager as a result of brokerage fees, finder’s fees or similar fees and expenses incurred by the Company in connection with (i) the identification, acquisition, management or sale of real property, or (ii) the raising of capital funds from Members and other potential investors (each as contemplated by Section 5.07(b)) shall be deemed a Company Expense, and such obligations shall be borne fully by the Company.

5.08 Compensation.

(a) The Management or one or more Affiliates of a Manager shall be entitled to receive from the Company (or a Subsidiary or Affiliate thereof) compensation in the form of fees as set forth below (the “Management Fees”):

(i) with respect to each Investment Property, a property management fee equal to the greater of \$3,000 and five percent (5%) of the gross operating revenues generated by such Investment Property, payable monthly;

(ii) an acquisition fee for each Investment Property acquired directly by the Company or a Subsidiary or other Affiliate Entity thereof or acquired by a member of the Sponsor Group (or an Affiliate of any such Member) and contributed to the Company, in each case equal to the greater of (i) \$50,000 or (ii) two percent (2.0%) of the gross purchase price for each Investment Property, to be paid at the closing of the purchase of the Investment Property or the contribution of such Investment Property to the Company, as applicable;

(iv) a refinancing fee, determined separately with respect to each refinancing, of one percent (1%) of the first aggregate \$20,000,000 of loan amounts placed, three quarters of one percent (0.75%) on aggregate loan amounts between \$20,000,000 and \$30,000,000, and one half of one percent (0.50%) on any loan amounts above \$30,000,000;

(v) with respect to each Investment Property, a call center fee equal to (A) the greater of (i) \$10 per call or (ii) \$1,250 per month or (B) at the election of the Management, the prevailing market rate charged to third parties for similar services, in each case to the provider of the Investment Property’s call center services;

(vi) (A) a developer fee equal to five percent (5%) of the costs of any Expansion, and (B) if any member(s) of the Sponsor Group or any Affiliate(s) of such member(s) build any such Expansion, a general contractor fee equal to seven and one-half percent (7.5%) of the costs of the Expansion (provided, however, these fees shall not apply to the costs of converting Investment Properties to the Company’s unmanned platform; provided, further, that

for the avoidance of doubt, the costs of any Expansion will include the salary and wages of service providers working on such Expansion, including service providers employed or retained by the Company or its Affiliates) (collectively, “Hard Costs”);

(vii) if the Management, a member of the Sponsor Group, or any of their Affiliates manages a general contractor, a project management fee equal to the greater of (i) \$5,000 per month or (ii) one percent (1.0%) of Hard Costs;

(viii) if there is a substitute guarantor, a guaranty fee in the amount determined in the discretion of the Manager; and

(ix) the Company Management Fee (as defined below).

(b) In addition to the fees described above, any member of the Sponsor Group or its Affiliates may receive a referral fee, buyer’s agent fee, or other fee paid in connection with the acquisition of any Investment Property (each, a “Referral Fee”). Each Class I Member hereby consents and agrees to the receipt of any such Referral Fee by any member of the Sponsor Group or its Affiliates, and no such receipt shall be considered a breach of any duty (including any fiduciary duty) owed by such Person or its Affiliates to the Company or any Member.

(c) Notwithstanding any other provision of this Agreement, the Management may, without the consent or approval of the Members, (i) increase the Management Fees (other than the Company Management Fee) to the prevailing market rates charged to third parties for similar services or (ii) add additional Management Fees so long as such additional Management Fees do not exceed the prevailing market rates charged to third parties for similar services; provided, however, that the Management shall give prompt written notice to the Members, in accordance with Section 10.11, of any such increases or additions to the Management Fees.

(d) The Management Fees shall be paid to a Manager or Affiliate thereof in exchange for managing or services to the Company (and its Subsidiaries and Affiliates) and the Investment Properties. No Manager shall be prevented from receiving any Management Fees by reason of the fact that such Manager, or any Affiliate thereof, also holds Units or is a Member of the Company.

(e) Any Management Fees described in this Section 5.08 (other than the Company Management Fee) will be payable collectively by the Company and the Parallel Company (or their Subsidiaries or Affiliates) in accordance with the principles set forth in Section 2.10 (i.e., such fees will not be charged to both the Company and the Parallel Company (or their Subsidiaries or Affiliates) in a duplicative manner).

5.09 Company Management Fees Except as otherwise determined by the Management in its sole discretion, the Company will pay management fees (the “Company Management Fees”) to the Management in consideration of its obligations under this Agreement, calculated and payable in accordance with the provisions of this Section 5.09.

(a) During the Capital Raise Period, the Company Management Fees will be payable at an annual rate equal to one and a half percent (1.5%) (i.e., 0.125% per month) of the aggregate Capital Commitments in respect of Class I Units (other than the Units of any Non-Fee Member, to the extent agreed by the Management). Any increase in the Company Management Fees resulting from an increase in the total Capital Commitments, whether as a result of increased Capital Commitments by existing Class I Members or the admission of additional Class I Members, shall be retroactive and effective as of the Initial Closing Date, and any portion of the Company Management Fees that would have been paid to the Management prior to such increase in Capital Commitments or admission of additional Members had such increase or admission occurred on the Initial Closing Date shall be paid to the Manager on the date of the next payment of Company Management Fees pursuant to Section 5.09(c) (in addition to the Company Management Fees otherwise payable on such date).

(b) During the Investment Period, the Company Management Fees will be payable at an annual rate equal to one and one half percent (1.5%) (i.e., 0.125% per month) of the aggregate Unreturned Capital Contributions in respect of all Class I Units (other than the Units of any Non-Fee Member, to the extent agreed by the Management), measured on the first business day of each month.

(c) The Company Management Fees (i) will accrue beginning on the Initial Closing Date and through the end of the Investment Period and (ii) will be paid in monthly installments. The first payment of the Company Management Fees will be made on the first business day of the month immediately following the Initial Closing Date, and thereafter on the first business day of each month (in each case, in the amount of Company Management Fees accruing in the preceding month, plus any additional amount described in Section 5.09(a) with respect to an increase in the total Capital Commitments). With respect to any payment of Company Management Fees for a partial month, the amount of such Company Management Fees shall be prorated for such month based on the ratio that the total number days in such period for which the Company Management Fees is payable bears to 30.

ARTICLE VI

ACTIONS OF THE MEMBERS

6.01 Meetings and Actions of Members. There shall be no required meetings of the Members, whether annually or otherwise. Except to the extent otherwise provided for in this Agreement, any actions taken by the Members, including the removal of a Manager and the election of a successor Manager, shall be in accordance with the affirmative vote or written consent of the Members holding the requisite percentage of Class S Units necessary to take such action. Unless action by Members holding a different percentage of Units is specifically required in this Agreement or in the Act, all actions taken by the Members shall be in accordance with the decision of Members constituting a Majority in Interest of the Class S Units. Any decision or action to be approved or taken for or with respect to the Company, and not otherwise specifically addressed by this Agreement, shall be made or determined by the decision or determination of Members constituting a Majority in Interest of the Class S Units. A Member's consent hereunder may be provided in electronic form and may be delivered by electronic mail or other electronic means. Any reasonable manifestation of a Member's assent shall be considered such Member's "written consent" for this purpose. The voting requirements for

action by the Members set forth in this Section 6.01, Section 5.01(b), Section 5.01(c), and other Sections of this Agreement are intended to override, to the greatest extent permitted under applicable law, the default provisions regarding voting and approval by the Members contained in the Act.

ARTICLE VII

LIMITATION OF LIABILITY AND INDEMNIFICATION OF MANAGERS AND MEMBERS

7.01 Limitation of Liability. No Indemnified Person shall be liable for the debts, obligations, and liabilities of the Company beyond, in the case of the Member, the Capital Contributions the Member has made or agreed to make in writing as required under Section 3.01 or otherwise under this Agreement. No Indemnified Person of the Company shall be liable to the Company or its Members for monetary damages for an act or omission in such Indemnified Person's capacity, except as provided in the Act in the case of (i) a Manager for any liability or damages therefor arising by reason of the failure of the Manager to comply with the duties and standards of conduct set forth in the Act, as modified or eliminated by this Agreement, or as otherwise imposed by the Act or other applicable law; or (ii) a Manager, or a Member in the circumstances provided in the Act, for distributions in violation of the Act or this Agreement. If the Act is amended to authorize action further eliminating or limiting the liability of the Indemnified Persons, then the liability of the Indemnified Persons will be eliminated or limited to the fullest extent permitted by the Act as so amended. Any repeal or modification of this Section shall not adversely affect the right or protection of an Indemnified Person existing at the time of such repeal or modification.

7.02 Reimbursements; Indemnification. As long as incurred in a manner that conforms with the provisions of this Agreement and the Act and except as otherwise provided in this Agreement, which exception shall apply to and include the costs and expenses to be borne by the Management under Section 5.07(d) that are not reimbursable by the Company, each Manager and Member shall be reimbursed by the Company for his, her, or its reasonable costs and expenses incurred or advanced in good faith in the ordinary course, and on behalf, of the Company's business or for the formation and organization of the Company (including, but not limited to, reasonable legal, accounting, filing, and other fees), even if incurred prior to the date of formation of the Company or execution of this Agreement; provided, however, that no Member or other holder of Units shall be reimbursed or indemnified by the Company for any federal, state or local income, estate, gift or other taxes imposed on the holder or its ultimate owners by reason of (i) such holder's having, selling or otherwise transferring any Units or Interest in the Company or (ii) allocation of income or gain from the Company or the Company's being treated as a flow-through entity, and not a separate taxable entity, for purposes of income tax laws. The Company shall indemnify the Indemnified Persons to the fullest extent permitted or required by the Act, as amended from time to time. The Company may advance expenses to be incurred by an Indemnified Person upon application therefor and the receipt by the Company of an agreement by such Indemnified Person to repay the Company for such advances, if such Indemnified Person receiving such advances is found by a court of competent jurisdiction, upon entry of a final judgment, to have violated any of the exceptions to limitation of liability contained in Section 7.01 or in the Act, which shall be deemed to preclude indemnification. The Company may also indemnify its employees and other representatives or agents up to the fullest

extent permitted under the Act or other applicable law. Any promissory note executed by or in connection with a request for indemnification shall be deemed paid and satisfied in full if it shall ultimately be determined that such Person is entitled to be indemnified by the Company against such expenses. Notwithstanding the foregoing, except as otherwise specifically approved by a Majority in Interest of the Class S Members, the indemnity provided in this Section shall be operative only (i) in the context of third-party suits or claims, and not in connection with demands, claims, suits, actions or proceedings either (A) initiated by any Member or any Affiliate thereof against another Member or any Affiliate, or (B) between the Company and a Member or Manager, and (ii) with respect to courses of action or inaction of the party seeking indemnification that did not constitute gross negligence, fraud, willful misconduct, malfeasance, or material breach of any representation, warranty, covenant or agreement set forth in this Agreement.

7.03 Other Rights. The indemnification provided by this Agreement shall: (i) be deemed exclusive of any other rights to which a Person seeking indemnification may be entitled under any statute, agreement, vote of the Class S Members, or otherwise, both as to action in official capacities and as to action in another capacity while holding such office; (ii) continue as to a Person who ceases to be an Indemnified Person; (iii) inure to the benefit of the estate, heirs, executors, administrators, or other successors of an Indemnified Person; and (iv) not be deemed to create any rights for the benefit of any other Person.

7.04 Fiduciary Duties and Obligations; Conflicts of Interest.

(a) Except to the extent required by the Act, no Member (including Sponsor Member in performance of any of its duties as a Class S Member under this Agreement) or Manager has fiduciary duties of loyalty or otherwise with respect to the Company; provided, however, that Sponsor Member shall perform its duties as a Class S Member under this Agreement in good faith.

(b) Each Class I Member recognizes and understands that members of the Sponsor Group (or their Affiliates) (i) make investments on behalf of, manage, and have continuing obligations to the Prior Self-Storage Companies and may have obligations with respect to similar entities formed after the Effective Date, each of which has made or may make investments along lines substantially similar to those to be made by the Company and may compete with the Company, and (ii) may acquire real property otherwise suitable for the Company on behalf of themselves (including, without limitation, to the extent necessary or desirable for such Person(s) to complete a like-kind exchange under Section 1031 of the Code) or the entities described in clause (i) of this Section 7.04(b). Each Class I Member hereby consents and agrees to the activities described in this Section 7.04(b) and further consents and agrees that neither the Company nor any of its Class I Members will have, pursuant to this Agreement, any rights in or to such activities, or any profits derived therefrom.

(c) Each Class I Member recognizes and understands that any sale or other disposition approved pursuant to Section 5.01(b)(iii) may be to an Affiliate of one or more members of the Sponsor Group (or another Entity in which one or more members of the Sponsor Group or their Affiliates are owners). Each Class I Member hereby consents and agrees to any

such sale or other disposition, provided that such sale or other disposition is made at the current fair market value of the Investment Property or other parcel of real property, as determined by the average of two valuations, each from a nationally recognized independent appraiser selected by the Management in its reasonable discretion.

ARTICLE VIII

TRANSFERABILITY OF INTEREST OR UNITS

8.01 Transferability of Interest or Units.

(a) The term “transfer” when used in this Agreement with respect to an Interest or Unit includes a sale, assignment, gift, exchange, or other disposition. A Member shall not at any time transfer any of his, her, or its Interest or any Class I Units except in accordance with the conditions and limitations set out in this Article VIII. Any transferee of Units by any means shall have only the rights, powers, and privileges set out in Section 8.03 or otherwise provided by law and shall not become a Member of the Company except as provided in this Article VIII. With the exception of Section 8.03(b)(E), the transfer restrictions set forth in the other Sections of this Article VIII shall not apply to Class S Units, and each Class S Member shall be able to freely transfer the Member’s Class S Units. Further, the transferee of any Class S Units shall be admitted as a Member, without requiring the consent or approval of any other Member, upon (i) satisfying the requirements of clauses (ii) and (iii) of Section 8.03(b) below, (ii) providing an opinion of counsel described in clause (iv) of Section 8.03(b) below (if and to the extent required by the Management), and (iii) obtaining the written approval of a Majority in Interest of the Class S Members, with such Majority in Interest to be determined based on the ownership of Class S Units immediately before the proposed transfer (and including the vote of the transferor, if a Class S Member, and its Units in the determination).

(b) Unless the Management otherwise determines in its sole discretion, any Class I Member (other than members of the Sponsor Group) that desires to transfer its Interest or Class I Units (the “Transferor”) (i) shall be liable for all fees and expenses (including attorneys’ fees and expenses, which are currently estimated at \$500 but subject to increase depending on the circumstances of the transfer) of the Company relating to such transfer, whether or not ultimately consummated, (ii) must use the transfer documents attached hereto at Exhibit D, and (iii) must work in good faith with the Firm to complete the transfer. Any attempted transfer of an Interest or Class I Units that does not comply with the provisions of this Section 8.01 shall be void ab initio and shall not be recognized by the Company for any purpose.

8.02 Restrictions on Transfers of Units.

(a) A transfer of all or any part of a Member’s Class I Units, other than a Related Transfer (as defined in Section 8.02(b)), may take place only upon (i) the approval thereof by a Majority in Interest of the Class S Members, which approval may be withheld or granted (including subject to any terms or conditions they may impose), all in the sole discretion of such Members, and (ii) satisfaction of the requirements of Section 8.03 below.

(b) If the proposed transfer of Class I Units is to an Affiliate or Relative of the transferor and no consideration in cash or other property will be paid or provided in exchange for the transfer of such Class I Units (a “Related Transfer”), the proposed Related Transfer may take place upon satisfaction of the requirements of Section 8.03 below. In any circumstance other than a Related Transfer or a transfer approved pursuant to Section 8.02(a) above, the remaining provisions of this Section 8.02 shall apply to the proposed transfer. Notwithstanding the foregoing, no transfer to (i) an Individual Retirement Account, (ii) any transferee subject to ERISA, or (iii) any other transferee that is managed by a custodian will be a “Related Transfer” for purposes of this Agreement.

(c) For purposes of this Section, “Relative” means, with respect to any natural Person (the “Base Person”):

(i) any parent of such Base Person, any descendant of any parent of such Base Person, and any spouse of any descendant of any parent of such Base Person, applied in each case by treating adopted children as descendants for all purposes;

(ii) any trust created solely for the benefit of the Base Person or any Persons described in clause (i) above; and

(iii) any executor or administrator or trustee for the Base Person or any of the Persons described in clauses (i) or (ii) above.

(d) Any attempted transfer of Class I Units that does not comply with the provisions of this Section 8.02 shall be void ab initio and shall not be recognized by the Company for any purpose.

8.03 Rights of Transferees; Admission of Transferees.

(a) Unless and until admitted as a Member of the Company in accordance with this Section 8.03, a transferee of Units (other than a transferee that is already a Member) shall not be entitled to any rights, powers, or privileges of a Member, except that the transferee shall be treated as an economic interest owner (within the meaning of the Act) and entitled only to receive the distributions and allocations of income, gains, expenses, and losses to which the transferor would be entitled but for the transfer of his, her, or its Units, subject to all terms and conditions of this Agreement.

(b) A transferee of Class I Units (other than a transferee that is already a Member) may be admitted as a Member of the Company only upon obtaining and providing to the Management (in the Management’s role on behalf of the Company) (i) the written consent of a Majority in Interest of the Class S Members, which consent may be granted or denied in their sole and absolute discretion, (ii) the transferee’s agreement in writing, in a form reasonably acceptable to a Majority in Interest of the Class S Members, to be bound by all of the terms and conditions of this Agreement, and (iii) the transferee’s name, address, taxpayer identification number, and any other information about the transferee required for the Company’s tax or other filings (including, without limitation, under the federal Corporate Transparency Act, as amended from time to time) that the Management may reasonably request; and (iv) an opinion of counsel,

reasonably satisfactory in form, substance and identity of counsel to Management, stating, except to the extent waived by the Management or a Majority in Interest of the Class S Members, that (A) neither the offering nor the proposed sale of the Units will violate any federal or applicable state securities law, (B) if the Company is classified as a partnership for purposes of federal income taxation immediately before the proposed transfer of Units, neither such offering nor the proposed sale will adversely affect the Company's treatment as a partnership for federal income tax purposes, (C) the transfer will not cause all or any portion of the assets of the Company to constitute "plan assets" under ERISA, the Plan Asset Regulations or the Code, (D) the proposed transferee is not a nonresident alien, a Person other than a "United States person" (as defined in section 7701(a)(30) of the Code), or a Person with respect to which the Company would have withholding obligations under Chapter 3 of the Code (sections 1441 through 1464 thereof) and (E) the proposed transferee would not cause the 10FSSAC5 REIT to cease to qualify as a REIT or otherwise violate the REIT Requirements or the Special REIT Restrictions set forth in Section 8.05.

(c) A transferee of Class S Units (other than a transferee that is already a Member) may be admitted as a Member of the Company as provided in Section 8.01.

8.04 Issuance of New Units. Subject to the limitations set forth in Section 5.01(c), in addition to the Units and Capital Contributions specifically set forth in this Agreement, the Company may issue additional Units or Interests to one or more other Persons in exchange for additional Capital Contributions to the Company. Such additional Units or Interests may be issued in exchange for such amount of Capital Contributions per Unit, and under such other terms and conditions, as may be determined and approved by a Majority in Interest of the Class S Members. Upon the issuance of additional Units in accordance with this Section 8.04, any Person to which such Units were issued shall become a Member of the Company upon (i) the acceptance of all of the terms and conditions of this Agreement, (ii) the making of or agreement to make the capital contributions as may be required in exchange for such Units, and (iii) the satisfaction of any other terms and conditions, all as may be determined by or acceptable to a Majority in Interest of the Class S Members. Upon the Company's issuance of additional Units in accordance with this Section 8.04, Exhibit C of this Agreement shall be amended by the Management (without requiring the approval of any Members) to reflect the names, addresses, and number of Units of all holders of Units after taking into account the additional issuance of Units.

8.05 Special REIT Restrictions. The provisions of this Agreement concerning the "Special REIT Restrictions" are contained in Exhibit E. References to Section 8.05 of this Agreement shall be deemed to refer to the provisions of Section 8.05 of Exhibit E.

8.06 Disposition of Interests in Trust. The provisions of this Agreement concerning Disposition of Interests in Trust are contained in Exhibit E. References to Section 8.06 of this Agreement shall be deemed to refer to the provisions of Section 8.06 of Exhibit E.

ARTICLE IX DISSOLUTION AND TERMINATION

9.01 Dissolution Events. The Company shall be dissolved by the first to occur of the following events (each a "Dissolution Event"):

(a) the earlier to occur of (i) the expiration of the term as set forth in Section 2.07, and (ii) if the Company's Certificate of Formation are amended hereafter to provide for a definite period of duration for the Company's existence, upon the close of business on the last day of such period;

(b) the written consent of a Majority in Interest of the Class S Members to dissolve the Company;

(c) the happening of any event of withdrawal (as defined in the Act) with respect to a Member if the Company no longer has any other Member(s); provided, however, that the Company shall not be dissolved upon the withdrawal of its last Member if, within ninety (90) days of the event of withdrawal of its last Member, the assignee or the fiduciary of such Member agrees in writing that the business of the Company may be continued until the admission of the assignee or fiduciary of the estate or its designee to the Company as a Member, effective as of the occurrence of the event of withdrawal that causes the withdrawal of the last Member; or

(d) the entry of a decree of judicial dissolution under the Act.

Notwithstanding any provision of the Act, the Company shall not dissolve prior to the occurrence of a Dissolution Event as set forth above.

Upon the dissolution of the Company, the business and affairs of the Company shall be terminated and wound up, and the assets of the Company shall be liquidated under this Article IX. Dissolution of the Company shall be effective as of the day on which the event occurs giving rise to the dissolution, but the Company shall not terminate until there has been a complete winding up and liquidation of the Company's business and affairs, and the assets of the Company have been distributed as provided in Section 9.03. Upon dissolution of the Company, the Management may cause any part or all of the assets of the Company to be sold in such manner as the Management may determine in an effort to obtain the best prices for such assets; provided, however, that the Management may, in its discretion, distribute assets of the Company in kind to the Class I Members and Class S Members to the extent practicable.

9.02 Certificate of Cancellation. Upon the occurrence of a Dissolution Event and the commencement of winding up of the Company, the Management (or such other Person or Persons as the Act may require or permit) shall file Certificate of Cancellation with the Secretary of State as may be required under the Act. In addition, at that time or such other time or times as may be required in connection with the Company's dissolution and winding up, the Management (or such other Person or Persons as may be responsible for the Company's liquidation) shall cancel any other filings that are required to, or should, be canceled and take such other actions as may be necessary to wind up and liquidate the Company. The Company shall be deemed to continue in existence for all purposes of this Agreement until its liquidation is completed pursuant to this Section 9.02. On completion of the distribution of the Company's assets as provided in this Article IX, the liquidation of the Company shall be completed (and the Company shall not be liquidated prior to such time).

9.03 Liquidation; Obligation to Repay. In settling accounts after dissolution of the Company, the assets of the Company shall be paid in the following order and priority:

(a) First, to the creditors of the Company, in the order of priority as provided by law, excluding Members with respect to their Units or Capital Contributions, but including Members on account of any loans made to, or other debts owed to them by, the Company; and

(b) The balance, to the Members and any other Persons recognized under this Agreement as an owner of Units in accordance with the positive balances in their Capital Accounts, after giving effect to all Capital Contributions, prior distributions, and allocations of income, gain, loss, or deduction for all periods (including allocations in connection with the Company's dissolution and liquidation); provided, however, that if such Capital Account balances (after making all adjustments required under the immediately preceding clause) exceed the amount available to be distributed for any distribution under this subsection (b), distributions will be made in the following priority (for the avoidance of doubt, taking in account Tax Distributions in the same manner such Tax Distributions would be taken into account if the distributions under this Section 9.03(b) were instead made pursuant to Section 4.02(a) or Section 4.02(b)):

(i) first, to the holders of Units in proportion to and in an amount up to the respective Unreturned Capital Contributions with respect to their Units;

(ii) next, to the holders of Class I Units in proportion to their respective Capital Contributions with respect to such Class I Units, until such time as the aggregate distributions to each Class I Unit pursuant to Section 4.02(a)(i), Section 4.02(b)(i), and this Section 9.03(b)(ii) equal each such Class I Unit's aggregate Preferred Return as of and through the date of such distribution; provided, however, that no Class I Unit may receive aggregate distributions pursuant to Section 4.02(a)(i), Section 4.02(b)(i), and this Section 9.03(b)(ii) in excess of such Class I Unit's aggregate accrued Preferred Return as of the date of such distribution;

(iii) next, in the ratios of (A) thirty percent (30%) to the holders of Class S Units (and among them in proportion to their respective numbers of Class S Units); and (B) seventy percent (70%) to the holders of Class I Units, and among them in proportion to and in the amounts equal to their respective Units' excess, if any (the "Secondary Return Excess"), of (I) the cumulative Secondary Return with respect to such Units accrued to the date of the distribution, over (II) the aggregate amount of all prior Secondary Return distributions with respect to such Units (i.e., made under clause (B) of Section 4.02(a)(ii), clause (B) of Section 4.02(b)(iii) above, or clause (B) of this Section 9.03(b)(iii)) – all until such time as the Secondary Return Excess has been reduced to zero for all holders of Class I Units; and

(iv) finally, any remaining amounts to and among all holders of Units in proportion to their remaining respective Capital Account balances, after giving effect to all of the distributions under the above clauses (i) through (iii) of this proviso.

(c) In connection with the liquidation of the Company and upon completion of the distribution of all other assets of the Company, the Class S Members shall be obligated, severally but not jointly, to repay to the Company the Excess Amount, if any. The “Excess Amount” shall equal the excess, if any, of (i) the aggregate amount of Capital Contributions made and Preferred Return accrued with respect to the Class I Units during the entire term of the Company, over (ii) the aggregate amount of distributions received by the Class I Members in respect of such Class I Units during the entire term of the Company (including distributions received pursuant to Section 9.03(b)). Notwithstanding the foregoing, the Excess Amount shall in no event exceed (i) the aggregate amount of distributions received by the Class S Members with respect to their Class S Units over the entire term of the Company (including distributions received pursuant to Section 9.03(b)), less (ii) all income taxes paid or payable on such amounts, or allocations of Net Income with respect thereto, by the Class S Members or the owners of any Class S Member (which taxes shall be calculated (A) utilizing the assumptions set forth in Section 4.02(c) and (B) assuming any property distributed in kind by the Company to the Class S Members since the inception of the Company had been sold for its fair market value immediately following its receipt by the Class S Member). Any amounts repaid by the Class S Member to the Company pursuant to this Section 9.03(c) shall be paid first to the unpaid creditors of the Company, if any, and then, if any amounts remain, such amounts shall be distributed to the Class I Members in proportion to their respective shares of the Excess Amount (calculated based on the respective amounts of excess of each Class I Member constituting the Excess Amount).

9.04 Reasonable Time for Winding Up. A reasonable time shall be allowed for the orderly winding up of the business and affairs of the Company and the liquidation of its assets pursuant to Section 9.03 in order to minimize any losses otherwise attendant upon such winding up and liquidation.

9.05 Withdrawal. Except as otherwise provided in this Agreement, no Member or other holder of Units shall at any time retire or withdraw from the Company or withdraw any amount out of his, her, or its Capital Account or share of the Company’s profits, income, or property. Any Member or other holder of Units that attempts to retire or withdraw in contravention of this Section 9.05 shall indemnify, defend and hold harmless the Company and all other Members (other than a Member who is, at the time of such attempted retirement or withdrawal, in default under this Agreement) from and against any losses, expenses, judgments, fines, settlements, or damages suffered or incurred by the Company or any such other Member arising out of, or resulting from, such attempted retirement or withdrawal.

9.06 No Deficit Restoration Obligation. Notwithstanding anything to the contrary in this Agreement, upon a liquidation within the meaning of Regulations section 1.704-1(b)(2)(ii)(g), if any Member has a deficit Capital Account balance (after giving effect to all contributions, distributions, allocations, and other Capital Account adjustments for all Fiscal Years, including the Fiscal Year in which the liquidation occurs), such Member has no obligation to make any Capital Contribution to the Company, and the negative balance of such Member’s Capital Account shall not be considered a debt owed by such Member to the Company or to any other Person for any purpose whatsoever.

9.07 Return of Capital Contributions Nonrecourse to Other Members. Except as provided by law or as expressly provided in this Agreement, upon dissolution each Member or other holder of Units shall look solely to the assets of the Company for the return of any Capital Contribution with respect to his, her, or its Units. If the Company's property remaining after the payment or discharge of the debts and liabilities of the Company is insufficient to return the Capital Contributions to one or more Members or other holders of Units, such Members or other holders of Units have no recourse against any other Member or Manager except as otherwise provided in Section 7.01.

ARTICLE X MISCELLANEOUS

10.01 Amendment. Except as otherwise specifically provided in this Agreement, this Agreement may be amended in whole or in part only upon the written consent of a Majority in Interest of the Class S Members; provided, however, that (i) any modifications or amendments that materially increase any Member's obligations under this Agreement beyond the obligations the Member would have without such amendment, or that are not applicable proportionately to all Members, shall not be effective against any adversely affected Member without such Member's written consent; (ii) any modifications or amendments that materially and adversely impact the rights granted to the Class I Members (including economic rights) relative to the rights of all Members will require the approval of a Majority in Interest of the Class I Members; and (iii) any provision requiring the consent of a specified level or group of Members shall not be amended to a lesser voting or consent requirement without the consent of the specified level or group of the Members; and provided, further, that the Members all affirmatively agree that any amendments necessary or appropriate to permit, approve, or provide for any of the actions or transactions described in Section 5.01(b)(iv) shall not require the consent or approval of any Members other than a Majority in Interest of the Class S Members and that no other Members will be treated for purposes of this Agreement as having been adversely affected by any such actions or transactions.

10.02 Severability. Each provision of this Agreement is intended to be severable. If any term or provision of this Agreement or the application thereof to any Person or circumstance shall be invalid or unenforceable to any extent, the remainder of this Agreement and the application of such provisions to other Persons or circumstances shall not be affected thereby, and the intent of this Agreement shall be enforced to the greatest extent permitted by law.

10.03 Delaware Law. The substantive laws of the State of Delaware shall govern the validity of this Agreement, the construction of its terms and the interpretation of the rights and duties of the parties, without giving effect to any choice of law or conflict of law rules or provisions (whether of the State of Delaware or any other jurisdiction) that would cause the application of the laws of any jurisdiction other than the State of Delaware.

10.04 Integrated Agreement. This Agreement supersedes any and all prior agreements or dealings between the parties hereto and their agents, employees, or officers with respect to the subject matter hereof (except as contained in any other agreements contemplated herein), and this Agreement constitutes the entire understanding and agreement among the parties hereto with respect to the subject matter hereof, and there are no agreements, understandings, restrictions, representations or warranties among the parties other than those set forth herein or herein

provided for; provided, however, that it is hereby acknowledged and agreed that the Manager on its own behalf or on behalf of the Company, without the approval of any other Member, may enter into a side letter or similar agreement with a Member which has the effect of establishing rights under, or altering or supplementing the terms of, this Agreement with respect to that Member only. The parties hereto agree that any terms contained in a side letter or similar agreement to such Member shall govern with respect to such Member notwithstanding any other provision of this Agreement and will not impact the terms applicable to any other Member.

10.05 Creditors. None of the provisions of this Agreement shall be for the benefit of or enforceable by any creditors of the Company or of any of its Affiliates, and no creditor that makes a loan to the Company or any of its Affiliates may have or acquire (except pursuant to the terms of a separate agreement executed by the Company in favor of such creditor) at any time, as a result of making the loan, any direct or indirect interest in Company profits, losses, gains, distributions, capital or property other than as a secured creditor or unsecured creditor, as the case may be.

10.06 Gender. Unless the context clearly indicates otherwise, the masculine, feminine and neuter genders shall be deemed to be interchangeable, and the singular shall include the plural and *vice versa*.

10.07 Waiver. No consent or waiver, express or implied, by the Company, any Manager, or any Member to or for any breach or default by the Company, any Manager, or any other Member in the performance by the Company, any Manager or such other Member of his, her, or its obligations under this Agreement shall be deemed or construed to be a consent or waiver to or of any other breach or default in the performance by the Company, any Manager, or such other Member of the same or any other obligations of the Company, the Manager or such other Member under this Agreement. Failure on the part of the Company, any Manager, or any Member to complain of any act or failure to act of the Company, any Manager, or any of the other Members or to declare the Company, any Manager, or any of the other Members in default, regardless of how long such failure continues, shall not constitute a waiver by the Company, a Manager, or such Member of his, her, or its rights hereunder.

10.08 Binding Agreement. Subject to the restrictions on transferability set forth in this Agreement, this Agreement shall inure to the benefit of and be binding upon the Members and their legal representatives, successors, and assigns.

10.09 Captions. Captions are included solely for convenience of reference; if there is any conflict between captions and the text of this Agreement, the text shall control.

10.10 Counterparts; Delivery by Facsimile. This Agreement may be executed in any number of counterparts with the same effect as if all parties hereto had signed the same document. All counterparts are to be construed together and shall constitute one Agreement. This Agreement and any signed agreement or instrument entered into in connection with this Agreement or contemplated hereby, and any amendments hereto or thereto, to the extent signed and delivered by means of a facsimile machine, electronic mail (including pdf or any electronic signature complying with the U.S. federal ESIGN Act of 2000, e.g., www.docuSign.com), or

other commercially reasonable transmission method shall be treated in all manner and respects as an original agreement or instrument and shall be considered to have the same binding legal effect as if it were the original signed version thereof delivered in person. At the request of any party hereto or to any such agreement or instrument, each other party hereto or thereto agrees to, and must, re-execute original forms thereof and deliver them to all other parties. No party hereto or to any such agreement or instrument may raise the use of a facsimile machine, electronic mail, or other commercially reasonable transmission method to deliver a signature or the fact that any signature or agreement or instrument was transmitted or communicated through the use of a facsimile machine, electronic mail, or other commercially reasonable transmission method as a defense to the formation of a contract, and each such party forever waives any such defense.

10.11 Notice.

(a) All notices, demands, requests, or consents provided for or permitted to be given pursuant to this Agreement must be in writing, and electronic communications shall be considered to be in writing for this purpose.

(b) All notices, demands, requests and consents to be sent pursuant to this Agreement to a Manager, a Member, or another Person recognized hereunder as a holder of Units shall be deemed to have been properly given or served if addressed to such Person at the Person's address as it appears on the Company records and (i) personally delivered, (ii) deposited for next day delivery by Federal Express or other similar overnight courier service, (iii) deposited in the United States mail, prepaid, and registered or certified with return receipt requested, (iv) transmitted via facsimile to the attention of such Person with receipt acknowledged, or (v) transmitted via electronic mail or other electronic means to the attention of such Person. If not otherwise specified herein, all notices to be sent to the Company shall be sent in care of any Manager.

(c) All notices, demands, and requests so given shall be deemed received: (i) when actually received, if personally delivered, deposited for next day delivery with an overnight courier, transmitted via electronic mail, facsimile or other electronic means, or (ii) as indicated upon the return receipt if deposited in the United States mail.

(d) Each Manager, Member, and other Person recognized hereunder as a holder of Units has the right from time to time, and at any time during the term of this Agreement, to change their addresses by delivering to the other parties written notice of such change in the manner prescribed in Section 10.11(b).

(e) All distributions to any Member or other Person recognized hereunder as a holder of Units shall be made at the address to which notices are sent unless otherwise specified in writing by any such Member or other holder of Units.

10.12 Regulatory Matters.

(a) Each Class I Member agrees to provide the Management, promptly upon receipt of the Management's written request therefor, with any information or reasonable

undertakings regarding such Class I Member or its beneficial owner(s) that the Management deems necessary or advisable in order to determine or ensure compliance with all applicable laws, regulations and administrative pronouncements concerning money laundering, criminal activities and governmental sanctions, including the federal Corporate Transparency Act and “know your customer” laws, regulations and pronouncements (or to comply with policies required to be adopted under such laws or regulations or policies required by or endorsed by self-regulatory organizations or industry trade associations) (collectively, “Anti-Money Laundering Laws”) or to respond to requests for information concerning the identity of the Company’s direct or indirect beneficial owners from any governmental authority, self-regulatory organization or any financial institution or other intermediary in connection with its anti-money laundering or government sanctions compliance procedures.

(b) Each Class I Member represents that (A) neither it, nor to the best of its knowledge, any of its beneficial owners having an indirect interest in the Company to be acquired under a Subscription Agreement, are subject to sanctions administered by the Office of Foreign Assets Control (“OFAC”) or are included in any Executive Orders or on the list of Specially Designated Nationals and Blocked Persons (the “SDN List”) or the Sectoral Sanctions Identifications List (the “SSI List”) maintained by OFAC, and (B) it does not know or have any reason to suspect that the monies used to fund its interest in the Company are derived from, invested for the benefit of or related in any way to the governments of, or Persons within, any country under a U.S. embargo enforced by OFAC.

(c) Each Class I Member acknowledges that if at any time it is discovered that such Class I Member has made a contribution or payment to the Company of money derived from, or related to, any activity that is deemed criminal under U.S. or other law or that causes the Management, the Sponsor Group, the Company or any of their Affiliates to be in violation of Anti-Money Laundering Laws; any distribution to such Class I Member is “blocked” under Anti-Money Laundering Laws; such Class I Member or any of its beneficial owners is or becomes listed on the SDN List or the SSI List or any similar list maintained by OFAC; or if otherwise required by applicable law or regulation related to money laundering, criminal activities or government sanctions, the Management, on its own behalf and/or on behalf of the Company, may undertake appropriate actions to ensure compliance with any applicable law, regulation or pronouncement related to the foregoing and, subject to compliance with applicable law, may cause the Company to redeem such Class I Member’s Interest and/or Class I Units using Company funds at a price equal to the lesser of (1) the amount such Class I Member has contributed to the Company for such Interest or Class I Units, or (2) the current fair market value of such Interest or Class I Units, as determined in the reasonable discretion of the Management; *provided, however*, that the Management shall cause the Company to redeem such Class I Member’s interest at such price as may be required by law, regulation or government order.

10.13 Legal Counsel. This Agreement was prepared by Wyrick Robbins Yates & Ponton LLP (the “Firm”), which is counsel for the Company and the Members within the Sponsor Group. Each Member acknowledges that the Firm was counsel solely to the Company and the Members that are within the Sponsor Group, and not to any other Member, and that each other Member had the opportunity to consult his, her, or its own counsel prior to signing this Agreement. Each Member acknowledges and agrees that the Firm, which represents the

Company and the Members that are within the Sponsor Group, does not represent and will not be deemed under the applicable codes of professional responsibility to have represented or to be representing any or all of the Members, other Members within the Sponsor Group, in any respect.

SIGNATURES BEGIN ON THE NEXT PAGE.

IN WITNESS WHEREOF, the undersigned have executed or caused to be executed on their behalf this Limited Liability Company Agreement of 10FSSAC5-A, LLC as of the date first above written, and do hereby assume and agree to be bound by and to perform all of the terms and provisions set forth in this Agreement.

COMPANY:

10FSSAC5-A, LLC

By: 10FSSAC5 Manager, LLC,
its Manager

By: _____
Name: _____
Title: Manager

MANAGER:

10FSSAC5 MANAGER, LLC

By: _____
Name: _____
Title: Manager

MEMBERS AS OF THE EFFECTIVE DATE:

10FSSAC5 SPONSOR, LLC

By: _____
Name: _____
Title: Manager

By: _____
Name: Bradford Minsley

By: _____
Name: Clifton Minsley

SIGNATURES OF OTHER CLASS I MEMBERS APPEAR ON FOLLOWING PAGES.

**CLASS I MEMBER SIGNATURE PAGE
OF LIMITED LIABILITY COMPANY AGREEMENT OF
10FSSAC5-A, LLC**

The undersigned Class I Member hereby executes the Limited Liability Company Agreement of 10FSSAC5-A, LLC, as the same may be amended from time to time, to be effective as of the date accepted by the Manager on behalf of the Company, hereby agrees to be bound by and subject to the terms and provisions of such document, and hereby authorizes this signature page to be attached to a countersigned original of such document executed by the Company and the other Members of 10FSSAC5-A, LLC.

SIGNATURE IF CLASS I MEMBER IS AN INDIVIDUAL:

(Signature)

(Signature of Joint Member, if any)

(Print Name)

(Print Name of Joint Member, if any)

SIGNATURE IF CLASS I MEMBER IS A PARTNERSHIP, CORPORATION, LIMITED LIABILITY COMPANY, TRUST, OR OTHER ENTITY:

(Print Name of Class I Member)

By: _____

Print Name: _____

Title: _____

[Class I Member Signature Page]

Accepted on behalf of the Company:

Date: _____

10FSSAC5-A, LLC

By: 10FSSAC5 Manager, LLC, its Manager

By: _____

Name: _____

Title: Manager

[Class I Member Signature Page]

EXHIBIT A
TO LIMITED LIABILITY COMPANY AGREEMENT OF
10FSSAC5-A, LLC

Management

By attaching his, her, or its signature hereto, each undersigned Person does hereby consent and agree to serve as a Manager of 10FSSAC5-A, LLC, pursuant to the Delaware Limited Liability Company Act and the Limited Liability Company Agreement of 10FSSAC5-A, LLC, as such Act and Agreement may be hereafter amended, until such time as the undersigned's death (if a human being), dissolution and liquidation (if an Entity), removal, resignation, or successor(s) have been duly elected and qualified to serve.

This consent shall be effective as of the __ day of March, 2025.

10FSSAC5 Manager, LLC

By: _____

Name: _____

Title: Manager

EXHIBIT B
TO LIMITED LIABILITY COMPANY AGREEMENT OF
10FSSAC5-A, LLC

Allocation Provisions

The provisions of this Exhibit B shall apply to the Company and its Members at all times during which the Company is treated as a partnership for federal tax purposes.

Section B.1 Definitions. The following defined terms used in this Exhibit B have the meanings specified below.

(a) “Adjusted Capital Account” means, with respect to any Member, the balance in such Member’s Capital Account (as of the end of any period for which allocations of the Company’s Income or Loss are made), increased by (i) the amount of (A) any deficit balance that the Member is obligated to restore upon liquidation of the Company pursuant to Regulations section 1.704-1(b)(2)(ii)(b)(3) or is treated as obligated to restore pursuant to Regulations section 1.704-1(b)(2)(ii)(c), and (B) the Member’s share of Company Minimum Gain and Member Nonrecourse Debt Minimum Gain, and decreased by (ii) the items described in Regulations section 1.704-1(b)(2)(ii)(d)(4), (5), and (6). The foregoing definition of Adjusted Capital Account is intended to comply with the provisions of Regulations section 1.704-1(b)(2)(ii)(d) and shall be interpreted consistently therewith.

(b) “Company Minimum Gain” shall have the meaning set forth for “partnership minimum gain” in sections 1.704-2(b)(2) and 1.704-2(d) of the Regulations

(c) “Income” and “Loss” means, for each Fiscal Year or other period, an amount equal to the Company’s taxable income or loss for such year or period, determined in accordance with Code section 703(a) (for this purpose, all items of income, gain, loss, or deduction required to be stated separately pursuant to Code section 703(a)(1) will be included in taxable income or loss), with the adjustments set forth below.

(i) Any income of the Company that is exempt from federal income tax and not otherwise taken into account in computing Income and Loss pursuant to this definition shall be added to such income or loss.

(ii) There shall be subtracted from such income or loss any expenditures of the Company not deductible in computing its taxable income or not properly chargeable to capital account (and that are not otherwise taken into account in computing Income and Loss pursuant to this definition), any expenditures contemplated by section 709 of the Code (except for amounts with respect to which an election is properly made under section 709(b) of the Code), and any expenditures resulting in a deduction for a loss incurred in connection with the sale or exchange of Company property that is disallowed to the Company under sections 267(a)(1) or 707(b) of the Code.

(iii) Gain or loss resulting from any disposition of Company property with respect to which gain or loss is recognized for federal income tax purposes shall be computed by reference to the book value of the disposed of property, notwithstanding that the adjusted tax basis of such property differs from its book value.

(iv) In lieu of the depreciation, amortization, and other cost recovery deductions taken into account in computing such taxable income or loss, there shall be taken into account depreciation as computed on the Company's books and records for accounting purposes.

(v) Upon any actual or deemed distribution to a Member of any Company property (other than cash or cash equivalents) with respect to any Units, there shall be included and taken into account any unrealized gain or unrealized loss attributable to such distributed property, as if such unrealized gain or unrealized loss had been recognized in a sale of such property immediately prior to such distribution for an amount equal to the fair market value of such property.

(vi) In the event that the values of the Company assets are adjusted in accordance with Regulations section 1.704-1(b)(2)(iv)(f), the aggregate adjustments shall be included and taken into account in computing Income or Loss pursuant to the terms of this Agreement, as if the Company recognized gain or loss on a sale of such assets at such time equal to the amount of such aggregate adjustments.

(vii) To the extent an adjustment to the adjusted tax basis of any Company asset pursuant to Code section 734(b) is required under Regulations section 1.704-1(b)(2)(iv)(m)(4) to be taken into account in determining Capital Accounts as a result of a distribution other than in complete liquidation of a Member's Interest, the amount of such adjustment shall be treated as an item of gain (if the adjustment increases the basis of the asset) or loss (if the adjustment decreases the basis of the asset) from the disposition of the asset and shall be taken into account for purposes of computing Income or Loss.

(viii) Notwithstanding any other provision of this definition, any items that are specially allocated pursuant to Sections B.3 through B.6 below shall not be taken into account in computing Income or Loss.

After taking into account the foregoing adjustments to taxable income, if the result is an excess of income and gains over expenditures, losses and deductions, the Company shall be treated as having "Net Income", and if the result is an excess of expenditures, losses and deductions over income and gains, the Company shall be treated as having "Net Loss". In addition, the amounts of the items of Company income, gain, loss, or deduction available to be specially allocated pursuant to Sections B.3 through B.6 below shall be determined by applying rules analogous to those set forth above in clauses (i) through (vii).

(d) "Member" shall be interpreted and applied so as to mean and include all Persons that are treated and respected under the Agreement as being a holder of Units, regardless of whether such holder has been admitted as a Member of the Company.

(e) “Member Nonrecourse Debt” has the meaning set forth for “partner nonrecourse debt” in section 1.704-2(b)(4) of the Regulations.

(f) “Member Nonrecourse Debt Minimum Gain” shall mean an amount, with respect to each Member Nonrecourse Debt, equal to the Company Minimum Gain that would result if such Member Nonrecourse Debt were treated as a Nonrecourse Liability, determined in accordance with section 1.704-2(i)(3) of the Regulations.

(g) “Member Nonrecourse Deductions” has the meaning set forth for “partner nonrecourse deductions” in sections 1.704-2(i)(1) and 1.704-2(i)(2) of the Regulations.

(h) “Nonrecourse Deductions” has the meaning set forth in section 1.704-2(b)(1) of the Regulations.

(i) “Nonrecourse Liability” shall mean a liability of the Company for which no Member bears the economic risk of loss within the meaning of section 1.752-2 of the Regulations.

Unless otherwise specified defined, other terms with initial capital letters used in this Exhibit B have the same meaning as ascribed to them in the main text of the Limited Liability Company Agreement of the Company, as such agreement may be amended or restated from time to time in accordance with the provisions thereof (the “Agreement”). This Exhibit B shall be treated for all purposes as being fully a part of, and incorporated within, the Agreement, as if the provisions of this Exhibit B were set forth in the main text of the Agreement.

Section B.2 Net Income and Net Loss. After first giving effect to any required special allocations provided in Sections B.3 to B.6 below, for purposes of maintaining Capital Accounts and in determining the rights of the Members among themselves, Net Income or Net Loss, if any, as determined for book purposes within the meaning of Regulations section 1.704-1(b), for all Fiscal Years or other periods, shall be allocated in accordance with this Section B.2.

(a) Net Income, if any, for a Fiscal Year or other period shall be allocated in the following order and priority:

(i) First, to and among all the holders of Units in proportion to and to the extent of their Units’ respective amounts of the excess, if any, of (A) the aggregate amount of Net Loss previously allocated with respect to their outstanding Units under Section B.2(b)(v), over (B) the aggregate amount of Net Income previously allocated with respect to such Units under this Section B.2(a)(i);

(ii) Next, to and among all the holders of Units in proportion to and to the extent of their Units’ respective amounts of the excess, if any, of (A) the aggregate amount of Net Loss previously allocated with respect to their outstanding Units under Section B.2(b)(iv), over (B) the aggregate amount of Net Income previously allocated with respect to such Units under this Section B.2(a)(ii);

(iii) Next, if Company Management Fees expenses have been previously allocated with respect to any Class I Units pursuant to Section B.6 or Section B.2(e), to the holders of Class I Units in proportion to and to the extent of their Class I Units' respective amounts of the excess, if any, of (A) the aggregate amount of such Company Management Fees expenses previously allocated with respect to such Units, over (B) the aggregate amount of Net Income previously allocated with respect to such Units under this Section B.2(a)(iii);

(iv) Next, to and among the holders of Class I Units in proportion to and to the extent of their outstanding Units' respective amounts of the excess, if any, of (A) the aggregate accrued Preferred Return with respect to such Units (whether or not yet distributed by the Company) as of and through the date of determination, over (B) the aggregate amount of Net Income previously allocated with respect to such Units under this Section B.2(a)(iv);

(v) Next, until such time as the aggregate Net Income allocated under clause (B) of this Section B.2(a)(v) with respect to the Class I Units of each holder thereof (net of any Net Loss allocated under Section B.2(b)(ii) in offset of earlier allocations under that clause (B) of such Net Income amounts) equals the total accrued Secondary Return with respect to such Units as of and through the date of determination, to and among all holders of Units in the ratios of (A) thirty percent (30%) to the holders of Class S Units (and among them in proportion to their respective numbers of Class S Units); and (B) seventy percent (70%) to the holders of Class I Units, and among them in proportion to and in an amount equal to their outstanding Units' respective amounts of the excess, if any, of (I) the aggregate accrued Secondary Return with respect to such Units (whether or not yet distributed by the Company) as of and through the date of determination, over (II) the aggregate amount of Net Income previously allocated with respect to such Units under this clause (B) of this Section B.2(a)(v); and

(vi) Finally, any remaining Net Income to and among the holders of Class I Units and Class S Units as necessary so that the amounts of aggregate Net Income allocated under this Section B.2(a)(vi) with respect to such holders' outstanding Units are in proportion to their respective Ultimate Percentages.

(b) Net Loss, if any, for a Fiscal Year or other period shall be allocated in the following order and priority:

(i) First, to and among all holders of Units in proportion to and to the extent of their Units' respective amounts of the excess, if any, of (A) the aggregate amount of Net Income previously allocated with respect to their outstanding Units under Section B.2(a)(vi), over (B) the aggregate amount of Net Loss previously allocated with respect to such Units under this Section B.2(b)(i);

(ii) Next, to and among the holders of Class I Units and Class S Units in proportion to and to the extent of their respective amounts of the excess, if any, of (A) the aggregate amount of Net Income previously allocated with respect to their outstanding Units under Section B.2(a)(v), over (B) the aggregate amount of Net Loss previously allocated with respect to such Units under this Section B.2(b)(ii); provided, however, that the offsetting

allocations of Net Loss under this Section B.2(b)(ii) shall be made and taken into account separately with respect to the Net Income allocated under each of clause (A) and clause (B) of Section B.2(a)(v), based on the prior relative amounts allocated under each such clause, so as to be able to determine the portion of the total Net Loss amounts allocated under this Section B.2(b)(ii) to take into account for purposes of the first parenthetical clause in Section B.2(a)(v);

(iii) Next, to and among the holders of Class I Units in proportion to and to the extent of their respective amounts of the excess, if any, of (A) the aggregate amount of Net Income previously allocated with respect to their outstanding Units under Section B.2(a)(iv), over (B) the aggregate amount of Net Loss previously allocated with respect to such Units under this Section B.2(b)(iii);

(iv) Next, to and among the holders of Class I Units and Class S Units (A) first, as necessary so that, to the greatest extent and as quickly as possible, the aggregate amounts of Net Loss allocated, for the current and all previous periods, with respect to all outstanding Class I Units and Class S Units under this Section B.2(b)(iv) are in proportion to, but not in excess of, the aggregate Capital Contributions made with respect to all such Units, and (B) thereafter, in proportion to the aggregate Capital Contributions made with respect to such Units until and so that the aggregate amount of Net Loss allocated, for the current and all previous periods, with respect to each outstanding Unit under this Section B.2(b)(iv) equals, but does not exceed, the amount of Capital Contributions with respect to such Unit; and

(v) Finally, any remaining Net Loss to and among the holders of Class I Units and Class S Units as necessary so that the amounts of aggregate Net Loss allocated under this Section B.2(b)(v) with respect to such holders' outstanding Units are in proportion to their respective Ultimate Percentages.

(c) All allocations of Net Income and Net Loss made under this Section B.2 shall be made as of the last day of each Fiscal Year of the Company or other period for which allocations are being made, but shall be made after adjusting Capital Account balances to reflect all distributions or Capital Contributions made on or before the last day of the period at issue.

(d) For purposes of determining the amounts of Net Income to be allocated under Sections B.2(a)(iv) or B.2(a)(v), to the extent any prior allocations of Net Income under either such clause have been subsequently offset with allocations of Net Loss under Sections B.2(b)(iii) or B.2(b)(ii), respectively, such prior allocations of Net Income shall be disregarded in their entirety for purposes of computing subsequent allocations of Net Income under Sections B.2(a)(iv) or B.2(a)(v), as the case may be. Similarly, for purposes of determining the amounts of Net Loss to be allocated under Section B.2(b)(iv), to the extent any prior allocations of Net Loss under that clause have been subsequently offset with allocations of Net Income under Section B.2(a)(ii), such prior allocations of Net Loss shall be disregarded in their entirety for purposes of computing subsequent allocations of Net Loss under Section B.2(b)(iv).

(e) It is the intent of the Company that all Persons that are issued Class I Units or Class S Units on or before the final Subsequent Closing Date shall be treated identically and proportionally to all such other holders of Units of that Class for purposes of allocations and

distributions, except for the amounts of Preferred Return or Secondary Return accruing with respect to Capital Contributions made at different times and allocations of Net Income (or Net Loss to offset such Net Income) with respect to such accrued Preferred Return or Secondary Return. Accordingly, if subscriptions for Class I Units or Class S Units are accepted by the Company on more than one date during the period beginning on the Initial Closing Date and ending on the final Subsequent Closing Date, items of gross income or gross expenses and deductions for the calendar year(s) (including, without limitation, Company Management Fees expenses) in which the Initial Closing Date and any Subsequent Closing Date occur shall, if and as necessary, be specially allocated to and among the holders of outstanding Class I Units or Class S Units so that all Persons who were holders of Class I Units or Class S Units effective as of the final Subsequent Closing Date receive the same amounts of net overall allocations of income and loss per Unit as each other Person holding Units of that same Class as of the final Subsequent Closing Date, regardless of when the Units were issued by the Company on or before the final Subsequent Closing Date, as if all such outstanding Units of such Class were issued on the final Subsequent Closing Date; provided, however, that the provisions of this sentence shall not apply with respect to any allocations of Net Income under Sections B.2(a)(iv) or B.2(a)(v) (regarding Preferred Return and Secondary Return, respectively), or Net Loss in offset thereof under Sections B.2(b)(iii) or B.2(b)(ii), respectively, by reason of Capital Contributions being made to the Company as of different effective times. Furthermore, notwithstanding the foregoing, the applicable Preferred Return and Secondary Return distributable with respect to each Class I Unit shall be determined based on the applicable date on which the Capital Contributions with respect to such Unit were made to the Company. Notwithstanding anything to the contrary in this Section B.2(e), no Company Management Fees shall be allocated to the Non-Fee Members with respect to their Units to the extent agreed by the Management.

(f) If and as determined by the Management, in its good-faith discretion and after consulting with the Company's professional tax or accounting advisors, the Management may determine (i) to apply the provisions of Section B.2(e) separately for Units issued on one or more dates after December 31, 2025, and for those issued before any such date or dates; and/or (ii) that the provisions of the remaining provisions of this Section B.2(f), rather than Section B.2(e), will apply upon and after the issuance at one or more times after December 31, 2025 (each, an "Issuance Time"), of additional Class I Units (such Units' being "New Units"). Upon a determination under clause (ii) of the preceding sentence, the book values of the Company's assets and the Capital Account balances with respect to the Units previously outstanding before the issuance of the New Units may be revalued and adjusted based on a Broker's Opinion of Value or an appraisal of the Company and its assets conducted by an MAI-certified appraiser, with such broker or MAI-certified appraiser selected in good faith by the Management, and with such adjustments to be made in a manner as provided in Regulations section 1.704-1(b)(2)(iv)(f). If determined to be appropriate by the Management, after any Issuance Time the provisions of this foregoing subsections of this Section B.2 will be thereafter applied as if the balances to which the already outstanding Units' Capital Accounts were revalued were actually an amount of initial Capital Contributions with respect to such outstanding Units that were made as of the Issuance Time, and the provisions above in this Section referring to "previous" or "aggregate" allocations of Net Income or Net Loss will be applied by disregarding all allocations of items arising before the Issuance Time and by taking into account only the allocations of items arising from and after the Issuance Time. In addition, the Management, after consultation with the

Company's professional tax or accounting advisors, may make whatever adjustments or interpretations in application as it deems appropriate in its good-faith judgment in applying these provisions or in addressing circumstances where there is more than one Issuance Time of new Units.

Section B.3 Special Allocations. The following special allocations shall be made in the following order.

(a) Minimum Gain Chargeback. Except as otherwise provided in section 1.704-2(f) of the Regulations, notwithstanding any other provision of this Exhibit B, if there is a net decrease in Company Minimum Gain during any Fiscal Year or other applicable period, each Member shall be specially allocated items of Company income and gain for such Fiscal Year or other applicable period (and, if necessary, subsequent Fiscal Years or other applicable periods) in an amount equal to such Member's share of the net decrease in Company Minimum Gain, determined in accordance with Regulations section 1.704-2(g). Allocations pursuant to the previous sentence shall be made in proportion to the respective amounts required to be allocated to each Member pursuant thereto. The items to be so allocated shall be determined in accordance with sections 1.704-2(f)(6) and 1.704-2(j)(2) of the Regulations. This Section B.3(a) is intended to comply with the minimum gain chargeback requirement in section 1.704-2(f) of the Regulations and shall be interpreted consistently therewith.

(b) Member Minimum Gain Chargeback. Except as otherwise provided in section 1.704-2(i)(4) of the Regulations, notwithstanding any other provision of this Exhibit B, if there is a net decrease in Member Nonrecourse Debt Minimum Gain attributable to a Member Nonrecourse Debt during any Fiscal Year or other applicable period, each Member who has a share of the Member Nonrecourse Debt Minimum Gain attributable to such Member Nonrecourse Debt, determined in accordance with section 1.704-2(i)(5) of the Regulations, shall be specially allocated items of Company income and gain for such Fiscal Year or other applicable period (and, if necessary, subsequent Fiscal Years or other applicable periods) in an amount equal to such Member's share of the net decrease in Member Nonrecourse Debt Minimum Gain attributable to such Member Nonrecourse Debt, determined in accordance with Regulations section 1.704-2(i)(4). Allocations pursuant to the previous sentence shall be made in proportion to the respective amounts required to be allocated to each Member pursuant thereto. The items to be so allocated shall be determined in accordance with sections 1.704-2(i)(4) and 1.704-2(j)(2) of the Regulations. This Section B.3(b) is intended to comply with the minimum gain chargeback requirement in section 1.704-2(i)(4) of the Regulations and shall be interpreted consistently therewith.

(c) Qualified Income Offset. If any Member unexpectedly receives any adjustments, allocations, or distributions described in sections 1.704-1(b)(2)(ii)(d)(4), 1.704-1(b)(2)(ii)(d)(5), or 1.704-1(b)(2)(ii)(d)(6) of the Regulations, items of Company income and gain shall be specially allocated to each such Member in an amount and manner sufficient to eliminate, to the extent required by the Regulations, any deficit Adjusted Capital Account of such Member as quickly as possible; provided, however, that an allocation pursuant to this Section B.3(c) shall be made only if and to the extent that such Member would have an Adjusted Capital Account deficit after all other allocations provided for in this Section B.3 have been tentatively made as if this Section B.3(c) were not in the Agreement. This Section B.3(c) is intended to constitute a

“qualified income offset” within the meaning of section 1.704-1(b)(2)(ii)(d) of the Regulations and shall be interpreted consistently therewith.

(d) Gross Income Allocation. If any Member has a deficit Capital Account at the end of any Fiscal Year (or other applicable period) that is in excess of the sum of (i) the amount such Member is obligated to restore pursuant to any provision of this Agreement, and (ii) the amount such Member is deemed to be obligated to restore pursuant to the penultimate sentences of Regulations sections 1.704-2(g)(1) and 1.704-2(i)(5), each such Member shall be specially allocated items of Company income and gain in the amount of such excess as quickly as possible; provided, however, that an allocation pursuant to this Section B.3(d) shall be made only if and to the extent that such Member would have a deficit Capital Account in excess of such sum after all other allocations provided for in this Exhibit B have been made as if Section B.3(c) hereof and this Section B.3(d) were not in the Agreement.

(e) Nonrecourse Deductions. Nonrecourse Deductions for any Fiscal Year or other applicable period shall be specially allocated to the Members in accordance with their respective Ultimate Percentages as such Ultimate Percentages may be amended from time to time in accordance with this Agreement, unless and except to that extent that the Company Tax Rep, upon consultation with Company’s professional tax advisors, determines that another manner is required under Code section 704 and the Regulations thereunder. For purposes of determining each Member’s proportionate share of the “excess nonrecourse liabilities” of the Company within the meaning of Regulations section 1.752-3(a)(3), such excess nonrecourse liabilities shall be allocated to and among all of the Members in proportion to their respective Ultimate Percentages, unless and except to that extent that the Company Tax Rep, upon consultation with Company’s professional tax advisors, determines that another manner is required under Code section 752 and the Regulations thereunder.

(f) Member Nonrecourse Deductions. Any Member Nonrecourse Deductions for any Fiscal Year or other applicable period shall be specially allocated to the Member that bears the economic risk of loss with respect to the Member Nonrecourse Debt to which such Member Nonrecourse Deductions are attributable in accordance with Regulations section 1.704-2(i)(1).

(g) Section 754 Adjustments. To the extent an adjustment to the adjusted tax basis of any Company asset pursuant to Code section 734(b) or Code section 743(b) is required, pursuant to Regulations sections 1.704-1(b)(2)(iv)(m)(2) or 1.704-1(b)(2)(iv)(m)(4), to be taken into account in determining Capital Accounts as the result of a distribution to a Member in complete liquidation of such Member’s Units in the Company, the amount of such adjustment to Capital Accounts shall be treated as an item of gain (if the adjustment increases the basis of the asset) or loss (if the adjustment decreases such basis), and such gain or loss shall be specially allocated: (i) if Regulations section 1.704-1(b)(2)(iv)(m)(2) applies, to the Members in accordance with how they would share the allocated item of gain or loss if it were included in computing the Net Income or Net Loss in the Company for the period in which the adjustment occurs; or (ii) if Regulations section 1.704-1(b)(2)(iv)(m)(4) applies, to the Member to which such distribution was made.

(h) Special Allocation of Items Resulting from Company Audits. The Company Tax Rep, or such Person as the Company Tax Rep may designate, may cause the Company to make special allocations of income, gain, loss, or deduction in order to correct for

distortions arising from any LLC Tax Cost from a Company tax audit. Allocations made under this Section B.3(h) shall preserve, to the greatest extent permitted by law, the after-tax economic arrangement of the Members as set forth in Sections 4.02 and 9.03(b) of the Agreement.

Section B.4 Curative Allocations. The allocations set forth in subsections (a) through (g) of Section B.3 above (the “Regulatory Allocations”) are intended to comply with certain requirements of the Regulations. It is the intent of the Members that, to the extent possible, all Regulatory Allocations shall be offset either with other Regulatory Allocations or with special allocations of other items of Company income, gain, loss, or deduction pursuant to this Section B.4. Therefore, notwithstanding any other provision of this Exhibit B (other than the Regulatory Allocations), such offsetting special allocations of Company income, gain, loss, or deduction shall be in whatever manner the Company Tax Rep determines appropriate (based on the advice of the Company’s tax advisors) so that, after such offsetting allocations are made, each Member’s Capital Account balance is, to the extent possible, equal to the Capital Account balance such Member would have had if the Regulatory Allocations were not part of the Agreement and all Company items were allocated pursuant to other Sections of the Agreement. In exercising its discretion under this Section, the Company Tax Rep shall take into account future Regulatory Allocations that, although not yet made, are likely to be made and offset other prior Regulatory Allocations.

Section B.5 Compliance with Regulations. It is the intent of the Members that, to the greatest extent possible, the allocations of all items of income, gain, loss, deduction, and credit under this Agreement (i) have “substantial economic effect” within the meaning of, or otherwise be in accordance with, Code section 704(b) and the Regulations promulgated thereunder, and/or (ii) be consistent with the Members’ interests in the Company. Accordingly, to the extent adjustment to the allocations under this Agreement is necessary in order to be in compliance with the provisions of Code section 704(b) and the Regulations thereunder, such necessary adjustments in the allocations shall be made, but only to the smallest extent necessary. Furthermore, if there has been any adjustment in the allocations to the Members on account of the preceding sentence, subsequent allocations of income, gain, loss, deduction, or credit shall, to the extent possible, be allocated to the Members in the order and in a manner designed to result in each Member’s having a Capital Account balance equal to what such balance would have been had the allocation(s) pursuant to the preceding sentence not occurred, and in a manner that is likely to minimize any economic distortions that otherwise might result.

Section B.6 Special Allocation of Company Management Fees. All Company Management Fees expenses shall be allocated exclusively to the holders of Class I Units (excluding the Non-Fee Members to the extent agreed by the Management) for each accounting period and shall, to the greatest extent possible (subject to any required special “catch-up” allocations of Company Management Fees that may be required pursuant to Section B.2(e)), be specially allocated to and among the holders of outstanding Class I Units (excluding the Non-Fee Members to the extent agreed by the Management) in proportion to (i) in respect of Company Management Fees accrued during the Capital Raise Period, their respective Capital Commitments with respect to their Class I Units as of the date on which the applicable amount of Company Management Fees is computed and determined, and (ii) in respect of Company Management Fees accrued during the Investment Period, their respective Unreturned Capital Contributions with respect to their Class I Units as of the date on which the applicable amount of Company Management Fees is computed and determined. Notwithstanding the foregoing, for all purposes in connection with any

determinations under this Section B.6, all Class I Units owned by Non-Fee Members shall, to the extent agreed by the Management, be disregarded and treated as if they were never issued or outstanding.

Section B.7 Tax Allocations; Code Section 704(c). In accordance with section 704(c) of the Code and the Regulations thereunder, income, gain, loss, and deduction with respect to any property contributed to the capital of the Company shall, solely for income tax purposes, be allocated among the Members so as to take account of any variation between the adjusted basis of such property to the Company for federal income tax purposes and its fair market value (as agreed by the Company and the contributing Member) at the time of contribution using any permissible method described in the Regulations under Section 704(c) of the Code, as selected by the Management in its sole discretion. If any Company asset has been revalued on the books of the Company and the Capital Accounts of the Members adjusted under section 1.704-1(b)(2)(iv)(f) of the Regulations, subsequent allocations of income, gain, loss, and deduction with respect to such asset shall take account of any variation between the adjusted basis of such asset for federal income tax purposes and its adjusted book value in the same manner as, but not necessarily under the same convention(s) or method(s) specifically used by the Company for its allocations actually made or to be made by the Company, under section 704(c) of the Code and the Regulations thereunder.

EXHIBIT C
TO LIMITED LIABILITY COMPANY AGREEMENT OF
10FSSAC5-A, LLC

Membership
As of the Effective Date

<u>Member's Name and Address</u>	<u>Class I Units</u>	<u>Class S Units</u>	<u>Capital Commitment with respect to Class I Units</u>
Bradford Minsley 3301 Atlantic Ave. Raleigh, NC 27604	5	—	\$5,000 ¹
Clifton Minsley 3301 Atlantic Ave. Raleigh, NC 27604	5	—	\$5,000 ¹
10FSSAC5 Sponsor, LLC 3301 Atlantic Ave. Raleigh, NC 27604	10	100	\$10,000

¹ Subject to increase pursuant to Section 3.06 of the Agreement.

EXHIBIT D
TO LIMITED LIABILITY COMPANY AGREEMENT OF
10FSSAC5-A, LLC

Form of Transfer Documents

(attached)

EXHIBIT E
TO LIMITED LIABILITY COMPANY AGREEMENT OF
10FSSAC5-A, LLC

Special REIT Provisions

The provisions regarding Special REIT Restrictions and the Disposition of Interests in trust are contained in this Exhibit E. References to Sections 8.05 and 8.06 of the Agreement to which this Exhibit E is attached shall be deemed to refer to Sections 8.05 and 8.06 of this Exhibit E, and other Section references in this Exhibit E refer to Sections of the Agreement. Capitalized terms that are used in this Exhibit E and not otherwise defined herein shall have the meanings set forth in the Agreement to which this Exhibit E is attached. The provisions below are intended to be read as a part of Sections 8.05 and 8.06 (and are numbered accordingly).

For the purpose of this Exhibit E, the following terms shall have the following meanings:

“Beneficial Ownership” means ownership of Interests by a Person, whether the Interests is held directly or indirectly (including by a nominee), and shall include Interests that would be treated as owned for purposes of Code Section 542(a)(2), taking into account the constructive ownership rules of Section 544 of the Code, as modified by Section 856(h)(1)(B) and Section 856(h)(3) of the Code, except that in determining the number of Interests Beneficially Owned by a Person, no Interest shall be counted more than once. Whenever a Person Beneficially Owns Interests that are not actually outstanding (e.g., Interests issuable upon the exercise of an option or the conversion of a convertible security) (“Option Interests”), then, whenever this Agreement requires a determination of the percentage of outstanding shares of a class of Interests Beneficially Owned by such Person, the Option Interests Beneficially Owned by such Person shall also be deemed to be outstanding. The terms “Beneficial Owner,” “Beneficially Owns,” and “Beneficially Owned” have correlative meanings.

“Business Day” means a day which is not a Saturday, Sunday or a day on which banks in Raleigh, North Carolina are authorized or required by law to be closed.

“Charitable Beneficiary” means, with respect to any Charitable Trust, one or more beneficiaries of the Charitable Trust, provided that each such organization must be described in Code Section 501(c)(3), and contributions to each such organization must be eligible for deductions under each of Code Sections 170(b)(1)(A), 2055 and 2522.

“Charitable Trust” means any trust provided for in Section 8.05, for the exclusive benefit of any Charitable Beneficiary.

“Charitable Trustee” means one of the trustees designated by the Company, until such time as the Charitable Trustee resigns or the Company designates another Person that is a “United States Person” within the meaning of Code Section 7701(a)(30) and that is unaffiliated with either the Company or a Prohibited Owner (and, if different than the Prohibited Owner, the Person who would have had Beneficial Ownership of the interests that would have been owned of record by the Prohibited Owner), to serve as trustee of the Charitable Trust.

“Constructive Ownership” means ownership of Interests by a Person, whether the interest in Interests is held directly or indirectly (including by a nominee), and shall include interests that would be treated as owned through the application of Section 318(a) of the Code, as modified by Section 856(d)(5) of the Code. The terms “Constructive Owner,” “Constructively Owns,” and “Constructively Owned” shall have the correlative meanings.

“Disposition” means with respect to any Interest, or portion thereof, or any portion thereof, a sale, assignment, transfer, pledge, hypothecation, conveyance, gift, exchange or other disposition of such Interests, whether such disposition be voluntary, involuntary or by operation of law. For purposes of Exhibit E, a Disposition shall not include a merger or consolidation of a Person or a conversion of a Person into another type of Person, so long as the Persons holding a majority of the voting power of such Person immediately prior to such merger, consolidation or conversion continue to hold a majority of the voting power of such Person thereafter. A Disposition shall include the following: (a) in the case of an asset owned by a Person, a Distribution of such asset in connection with the dissolution, liquidation, winding up or termination of such Person (unless, in the case of dissolution, such Person’s business is continued without the commencement of liquidation or winding up); and (b) a disposition in connection with, or in lieu of, a foreclosure of an encumbrance. For purposes of Section 8.05, a Disposition shall also include any other event that causes any Person to acquire Beneficial Ownership or Constructive Ownership, or any agreement to take any such actions or cause any such events, of Interests or the right to vote or receive distributions on account of Interests, including (1) the granting or exercise of any option or warrant (or any disposition of any option or warrant), (2) any disposition of any securities or rights convertible into or exchangeable for Interests or any interest in Interests or any exercise of any such conversion or exchange right, and (3) any issuance, sale, transfer, gift, assignment, devise or other disposition of interests in other entities that result in changes in Beneficial Ownership or Constructive Ownership of Interests, in each case, whether voluntary or involuntary, whether owned of record, Constructively Owned or Beneficially Owned and whether by operation of law or otherwise; provided that the transfer of an indirect interest in a Person shall not constitute a Disposition, unless substantially all of the assets of such Person consist of its ownership interest in the Company. With respect to any Interests, “Dispose,” “Disposed” and “Disposing” have correlative meanings.

“Nonreporting Person” shall have the meaning set forth in Section 8.05(c).

“Prohibited Owner” means with respect to any Disposition, any Person who is prevented from becoming or remaining the owner of record title to the Interests by the provisions of Section 8.05.

“Restriction Termination Date” means the first day after the formation of the 10FSSAC5 REIT on which the Manager determines in its sole and absolute discretion that it is no longer in the best interests of the Company to attempt to, or continue to, have any one or more of its Subsidiaries qualify as a REIT or that compliance with the restrictions and limitations regarding Beneficial Ownership, Constructive Ownership and Dispositions of Interests set forth herein is no longer required in order for any one or more of its Subsidiaries to qualify as a REIT.

8.05. Special REIT Restrictions.

(a) Notwithstanding anything to the contrary contained in this Agreement, during the period commencing on the date of the Initial Closing and prior to the Restriction Termination Date: (i) no Person shall Beneficially Own Interests to the extent that such Beneficial Ownership of Interests would result in the 10FSSAC5 REIT (A) being “closely held” within the meaning of Code Section 856(h) (without regard to whether the ownership interest is held during the last half of a taxable year) or (B) being treated as a “pension-held REIT” within the meaning of Code Section 856(h)(3)(D); (ii) no Person shall Beneficially Own or Constructively Own Interests that would result in the 10FSSAC5 REIT actually owning (or Constructively Owning) an interest in a tenant that is described in Code Section 856(d)(2)(B) if the income derived by the 10FSSAC5 REIT from such tenant would cause the 10FSSAC5 REIT to fail to satisfy any of the gross income requirements of Code Section 856(c); (iii) any Disposition that, if effective, would result in the failure of the 10FSSAC5 REIT to qualify as a domestically controlled qualified investment entity (as defined in Code Section 897(h)(4)) shall be void *ab initio* as to the Disposition of that portion of any Interests which would be otherwise Beneficially Owned by the transferee, and the intended transferee shall acquire no rights in such Interests; and (iv) any Disposition that, if effective, would cause the 10FSSAC5 REIT to fail to qualify as a REIT pursuant to the REIT Requirements shall be *void ab initio* as to the Disposition of that portion of any Interests which would be otherwise Beneficially Owned by the transferee, and the intended transferee shall acquire no rights in such Interests. The Manager may waive any of the foregoing restrictions in its sole and absolute discretion.

(b) Notwithstanding any other provision of this Agreement, if any Disposition of Interests to a Person, change in capital structure or other event occurs which would result, if effective, in a violation of any of the restrictions set forth in Section 8.05(a), (i) then that portion of any Interests the Beneficial Ownership or Constructive Ownership of which otherwise would cause the 10FSSAC5 REIT to violate the restrictions set forth in Section 8.05(a) (rounded up to the nearest whole percentage interest) shall be automatically Disposed of to a Charitable Trust for the benefit of a Charitable Beneficiary, as described in this Section 8.05 effective as of the close of business on the Business Day prior to the date of such Disposition, and such Person shall acquire no rights in such Interests, or (ii) if the Disposition to the Charitable Trust described in clause (i) of this sentence would not be effective for any reason to prevent the violation of the restrictions set forth in Section 8.05(a), then the Disposition of that portion of any Interests, change in capital structure or other event which, if effective, would result in a violation of any of the restrictions set forth in Section 8.05(a) or otherwise would cause the 10FSSAC5 REIT to violate the restrictions set forth in Section 8.05(a) shall be *void ab initio*, and the intended transferee shall acquire no rights in such Interests and the intended transferor will continue to be obligated to fund its Capital Contribution.

(c) If a Person (the “Nonreporting Person”) who Beneficially Owns or Constructively Owns more than nine and eight-tenths percent (9.8%) of the outstanding interests in the 10FSSAC5 REIT does not provide all of the information required by Section 8.05(d) and, as a result, five (5) or fewer Persons would, but for the exchange required by this paragraph, Beneficially Own Constructively Owns, in the aggregate, more than forty-nine and nine-tenths percent (49.9%) of the outstanding interests in the 10FSSAC5 REIT, then, as of the day prior to the date on which such aggregate ownership would have come to exceed 49.9%, Interests Beneficially Owned Constructively Owns by such Nonreporting Person who Beneficially Owns Constructively Owns in excess of nine and eight-tenths percent (9.8%) of the outstanding

interests in the 10FSSAC5 REIT to the extent not described on the written notice, if any, provided by such Nonreporting Person pursuant to Section 8.05(d), shall be in accordance with Section 8.05(b), Disposed of automatically and by operation of law to the Charitable Trust to the extent necessary to prevent such aggregate ownership from exceeding forty-nine and nine-tenths percent (49.9%).

(d) Any Person who attempts or intends to acquire Beneficial Ownership or Constructive Ownership of Interests that will or may violate Section 8.05(a) shall immediately give written notice to the Company of such event, or in the case of such proposed or attempted Disposition, give at least twenty (20) Business Days prior written notice, and shall provide to the Company such other information as the Manager may request in order to determine the effect, if any, of such Disposition on the 10FSSAC5 REIT's status as a REIT. In the case of a proposed Disposition, the Company shall deliver to the Person proposing such Disposition notice of whether or not it shall permit and give effect to such Disposition not later than ten (10) Business Days following receipt by the Manager of such Person's notice and all other information reasonably requested by the Manager in accordance with this Section 8.05(d).

(e) Any Prohibited Owner with respect to Interests Disposed of to a Charitable Trust pursuant to Section 8.05(b) shall pay to the Charitable Trustee the amount of any dividends or distributions in respect of such Interests received by it after it becomes a Prohibited Owner. The Company shall take all measures that it determines reasonably necessary to ensure payment to the Charitable Trustee of any such dividend or distribution paid to a Prohibited Owner, and, if necessary, to the fullest extent permitted by law, shall withhold any portion of future dividends or distributions payable on Interests held by the Prohibited Owner.

(f) If the Manager shall at any time determine in good faith that a Disposition has taken place in violation of this Section 8.05 or that a Person intends to acquire or has attempted to acquire Beneficial Ownership Constructively Owns of any Interests in violation of this Section 8.05, the Manager may cause the Person to take such action as the Manager deems advisable to refuse to give effect to or to prevent such Disposition or acquisition, including, but not limited to, refusing to give effect to such Disposition on the books and records of the Company or instituting proceedings to enjoin such Disposition or acquisition.

(g) No Interests Disposed of in violation of this Section 8.05 shall entitle the holder to any voting rights other than as required under Delaware law. Any vote by a Prohibited Owner as a purported holder of Interests prior to discovery by the Company shall, to the fullest extent permitted by applicable law, be rescinded and shall be *void ab initio* with respect to such Interests.

(h) Nothing contained in this Agreement shall limit the authority of the Manager to take such action as it deems necessary or advisable to preserve the 10FSSAC5 REIT's qualification as a REIT. In applying the provisions of this Section 8.05, the Manager may take into account the lack of certainty in the REIT Requirements and may make interpretations concerning the related matters on as conservative a basis as the Manager deems advisable to minimize or eliminate uncertainty as to the 10FSSAC5 REIT's continued qualification as a REIT.

(i) To the extent this Section 8.05 may be inconsistent with any other provisions of this Agreement, this Section 8.05 shall control.

8.06. Disposition of Interests in Trust.

(a) Upon any purported Disposition or other event described in Section 8.05 that would result in a Disposition of Interests to a Charitable Trust, such Interests shall be deemed to have been Disposed of to the Charitable Trustee as trustee of a Charitable Trust for the exclusive benefit of one (1) or more Charitable Beneficiaries. Such Disposition to the Charitable Trustee shall be deemed to be effective as of the close of business on the Business Day prior to the purported Disposition or other event that results in the Disposition to the Charitable Trust pursuant to Section 8.05(b). The Charitable Trustee shall be appointed by the Manager and shall be a Person unaffiliated with the Company and any Prohibited Owner. Each Charitable Beneficiary shall be designated by the Company as provided in Section 8.06(f).

(b) Interests held by the Charitable Trustee pursuant to Section 8.06(f) shall be issued and outstanding Interests of the Company. A Prohibited Owner shall have no rights in the Interests held by the Charitable Trustee. A Prohibited Owner shall not benefit economically from ownership of any Interests held in trust by the Charitable Trustee, shall have no rights to dividends or other distributions and shall not possess any rights to vote or other rights attributable to the Interests held in the Charitable Trust. A Prohibited Owner shall have no claim, cause of action, or any other recourse whatsoever against the purported transferor of such Interests.

(c) The Charitable Trustee shall have all voting rights and rights to dividends or other distributions with respect to Interests held in the Charitable Trust, which rights shall be exercised for the exclusive benefit of the Charitable Beneficiary. Any dividend or other distribution paid prior to the discovery by the Company that Interests had been Disposed of to the Charitable Trustee but after the transaction giving rise to such Disposition shall be held in trust by the relevant Prohibited Owner for and paid by such Prohibited Owner to the Charitable Trustee upon demand and any dividend or other distribution authorized but unpaid shall be paid when due to the Charitable Trustee. Any dividends or distributions so paid over to the Charitable Trustee shall be held in trust for the Charitable Beneficiary. A Prohibited Owner shall have no voting rights with respect to Interests held in the Charitable Trust and, to the fullest extent permitted by law, effective as of the date that Interests have been Disposed of to the Charitable Trustee, the Charitable Trustee shall have the authority (at the Charitable Trustee's sole and absolute discretion) (i) to rescind as void any votes that may have been cast by a Prohibited Owner prior to the discovery by the Company that Interests had been Disposed of to the Charitable Trustee and after the transaction giving rise to such Disposition to the Charitable Trustee and (ii) to recast those votes that may have been cast by a Prohibited Owner prior to the discovery by the Company that Interests have been Disposed of to the Charitable Trustee and after the transaction giving rise to such Disposition to the Charitable Trustee in accordance with the desires of the Charitable Trustee acting for the benefit of the Charitable Beneficiary; provided, however, that, the foregoing notwithstanding, if the Company has already taken irreversible action, then the Charitable Trustee shall not have the power to rescind and recast votes that may have been cast by a Prohibited Owner. Notwithstanding the provisions of this Section 8.06, until the Manager has determined that a purported Disposition resulted in Interests

being Disposed of to a Charitable Trust, the Company shall be entitled to rely on its Disposition and other records for purposes of preparing lists of Members entitled to vote at meetings, determining the validity and authority of proxies and otherwise conducting votes of Members.

(d) Upon a dissolution event where the Company does not elect to continue its business under this Agreement, the Charitable Trustee shall be entitled to receive, ratably with each other holder of Interests of the class or series of Interests that is held in the Charitable Trust, that portion of the assets of the Company available for distribution to the holders of such class or series. The Charitable Trustee shall distribute any such assets received in respect of the Interests held in the Charitable Trust in any dissolution in accordance with Section 8.06(e).

(e) Within twenty (20) days after receiving notice from the Company that Interests have been Disposed of to the Charitable Trust, the Charitable Trustee of the Charitable Trust shall use best efforts to sell the Interests held in the Charitable Trust to a Person, designated by the Charitable Trustee, whose ownership of the Interests will not violate the limitations set forth in Section 8.05(a). Upon such sale, the interest of the Charitable Beneficiary in the Interests sold shall terminate and the Charitable Trustee shall distribute the net proceeds of the sale to the applicable Prohibited Owner and to the Charitable Beneficiary as provided in this Section 8.06(e). Such Prohibited Owner shall receive the lesser of (i) the price paid by such Prohibited Owner for the Interests or, if such Prohibited Owner did not give value for the Interests in connection with the event causing the Interests to be held in the Charitable Trust (e.g., in the case of a gift, devise or other such transaction), the “fair market value” of the Interests, as determined in good faith by the Manager, as of the day of the event causing the Interests to be held in the Charitable Trust and (ii) the price received by the Charitable Trustee from the sale or other disposition of the Interests held in the Charitable Trust. Any net sales proceeds in excess of the amount payable to such Prohibited Owner shall be immediately paid to the Charitable Beneficiary. If, prior to the discovery by the Company that Interests have been Disposed of to the Charitable Trustee, such Interests are sold by a Prohibited Owner, then (i) such Interests shall be deemed to have been sold on behalf of the Charitable Trust and (ii) to the extent that such Prohibited Owner received an amount for such Interests that exceeds the amount that such Prohibited Owner was entitled to receive pursuant to this Section 8.06(e), such excess shall be paid to the Charitable Trustee upon demand. Upon the sale or deemed sale of Interests by the Charitable Trustee pursuant to this Section 8.06(e), the purchaser shall be responsible for the Capital Contribution and the obligations of the Prohibited Owner (with respect to the portion of the Interests acquired).

(f) By written notice to the Charitable Trustee, the Company shall designate one or more nonprofit organizations described in Code Sections 501(c)(3), 170(b)(1)(A) or 170(c)(2) to be the Charitable Beneficiary of the interest in the Charitable Trust so that Interests held in the Charitable Trust will not violate the REIT Requirements.

(g) Interests Disposed of to the Charitable Trustee shall be deemed to have been offered for sale to the Company, or its designee, at a price equal to the price in the transaction that resulted in such Disposition to the Charitable Trust (or, in the case of a devise or gift, the fair market value as determined in good faith by the Manager at the time of such devise or gift). Until the Charitable Trustee has sold the Interests held in the Charitable Trust pursuant to Section 8.06(e), the Company, as directed by the Manager, shall have the right to accept such

offer, and to redeem said Interests at said price or at said fair market value, as the case may be. Upon such sale to the Company, the interest of the Charitable Beneficiary in the Interests sold shall terminate and the Charitable Trustee shall distribute the net proceeds of the sale to the applicable Prohibited Owner.